

APARTMENT LEASE CONTRACT



Date of Lease Contract: September 29, 2025
(when the Lease Contract is filled out)

This is a binding document. Read carefully before signing.

Moving In — General Information

1. **PARTIES.** This Lease Contract (sometimes referred to as the “lease”) is between *you* the resident(s) (*list all people signing the Lease Contract*):

Jairo Alvarenga, Dunia Maricela. Padilla

and *us*, the owner: Barrington Apartments, LLC dba Legacy North Pointe Apartments

(*name of apartment community or title holder*). You’ve agreed to rent Apartment No. 0803, at 6740 Rockglen Way

in _____ (*street address*)
in Raleigh
(*city*), North Carolina, 27615 (*zip code*) (the “apartment” or the “premises”) for use as a private residence only. The terms “you” and “your” refer to all residents listed above. The terms “we,” “us,” and “our” refer to the owner listed above (or any of owner’s successors’ in interest or assigns). Written or electronic notice to or from our managers constitutes notice to or from us. If anyone else has guaranteed performance of this Lease Contract, a separate Lease Contract Guaranty for each guarantor is attached.

2. **OCCUPANTS.** The apartment will be occupied only by you and (*list all other occupants not signing the Lease Contract*):

As permitted by law, you understand and agree that we may provide access to any occupant listed under paragraph 2 (Occupants) in the absence of any written document that withdraws such authorization. No one else may occupy the apartment without our express written permission.

3. **LEASE TERM.** The initial term of the Lease Contract begins on the 30th day of September, 2025, and ends at 11:59 P.M. the 29th day of July, 2026. This Lease Contract will automatically renew month-to-month unless either party gives at least 60 days written notice of termination or intent to move-out as required by paragraph 43 (Move-Out Notice). In the event this Lease Contract has renewed on a month-to-month basis, it shall continuously renew each month thereafter until either party provides the other with a written notice of termination at least 30 days before the end of any such renewal term in accordance with the requirements set forth in paragraph 43 (Move-Out Notice).

4. **SECURITY DEPOSIT.** Unless modified by addenda, the total security deposit at the time of execution of this Lease Contract for all residents in the apartment is \$ 1215.00, due on or before the date this Lease Contract is signed, to be administered in accordance with the North Carolina Tenant Security Deposit Act, N.C.G.S. § 42-50 et seq.

In holding your security deposit, we will [*check one*]:
☒ Deposit the security deposit in a trust account with (name of bank or savings institution) PNC Bank

located at (address) 14925 Ballantyne Village Way Charlotte, NC 28277

or
☐ Furnish a bond from (name of bonding company) _____ located at (address) _____.

The security deposit may, in our discretion, be deposited in an interest-bearing account with the bank or savings institution named above. We may retain any interest earned upon the security deposit and may withdraw such interest, if any, from such account as it accrues as often as is permitted by the terms of the account.

Your security deposit will be held and, upon termination of your tenancy, be applied in the manner and for the purposes set forth in paragraphs 47 (Security Deposit Deductions and Other Charges) and 48 (Deposit Return, Surrender, and Abandonment) of this Lease Contract.

5. **KEYS.** You will be provided 2 apartment key(s), 2 mailbox key(s), 2 FOB(s), and/or 1 other access device(s) for access to the building and amenities at no additional cost at move-in. If the key, FOB, or other access device is lost or becomes damaged during your tenancy or is not returned or is returned damaged when you move out, you will be responsible for the costs for the replacement and/or repair of the same.

6. **RENT AND CHARGES.** Unless modified by addenda, you will pay \$ 1215.00 per month for rent, payable in advance and without demand:
☐ at the on-site manager’s office, or
☒ at our online payment site, or
☒ at https://gci.aptx.cm

Prorated rent of \$ 40.50 is due for the remainder of [*check one*]: ☒ 1st month or ☐ 2nd month, on _____.

Otherwise, you must pay your rent on or before the 1st day of each month (due date) with no grace period. Cash is unacceptable without our prior written permission. You must not withhold or offset rent unless expressly authorized by statute. We may, at our option, require at any time that you pay all rent and other sums in cash, certified or cashier’s check, money order, or one monthly check rather than multiple checks. At our discretion, we may convert any and all checks via the Automated Clearing House (ACH) system for the purposes of collecting payment. Rent is not considered accepted, if the payment/ACH is rejected, does not clear, or is stopped for any reason. If you don’t pay all rent on or before the 5th day of the month (late fee cannot be charged before the 6th day of the month), you’ll pay a late charge of 5% of the rental payment or \$15.00, whichever is greater—or, where your rent is subsidized in any way, the late fee shall not exceed \$15.00 or an amount equal to 5% of your share of the rental payment. The late fee shall be considered additional rent and you will owe such late fee without us having to demand it from you. You’ll also pay a charge of \$ 35.00 or the maximum amount allowed by law as of the date the check is tendered to us (whichever is greater) for each returned check or rejected electronic payment. If you don’t pay rent on time, you’ll be delinquent and all remedies under this Lease Contract will be authorized. We’ll also have all other remedies for such violation.

7. **UTILITIES.** We’ll pay for the following items, if checked and if permitted by law:
☐ water ☐ gas ☐ electricity ☐ master antenna
☐ wastewater ☐ trash ☐ cable TV
☐ other _____

You’ll pay for all other utilities, related deposits, and any charges, fees, or services on such utilities. You are responsible for having all utilities for which You are paying the provider directly, set up in Your name prior to taking possession of the Premises. You must not

allow utilities to be disconnected—including disconnection for not paying your bills—until the lease term or renewal period ends as such failure constitutes a default of the Lease. Cable channels that are provided may be changed during the lease term if the change applies to all residents. Utilities may be used only for normal household purposes and must not be wasted. If your electricity is ever interrupted, you must use only battery-operated lighting. If any utilities are submetered for the apartment, or prorated by an allocation formula, we will attach an addendum to this Lease Contract in compliance with state agency rules or city ordinance.

8. INSURANCE. We do not maintain insurance to cover your personal property or personal injury. We are not responsible to any resident, guest, or occupant for damage or loss of personal property or personal injury from (including but not limited to) fire, smoke, rain, flood, water and pipe leaks, hail, ice, snow, lightning, wind, explosions, earthquake, interruption of utilities, theft, hurricane, negligence of other residents, occupants, or invited/uninvited guests or vandalism unless otherwise required by law.

In addition, we urge all Residents, and particularly those residing in coastal areas, areas near rivers, and areas prone to flooding, to obtain flood insurance. Renter’s insurance may not cover damage to your property due to flooding. A flood insurance resource which may be available includes the National Flood Insurance Program managed by the Federal Emergency Management Agency (FEMA).

We ☐ require ☒ do not require you to get your own insurance for losses to your personal property or injuries due to theft, fire, water damage, pipe leaks and the like.

If renter’s insurance is required, you shall maintain at all times during the Term of this Lease, at your sole expense, a renter’s insurance policy, or its equivalent, issued by a licensed insurance company in a minimum policy coverage amount of \$ 100000.00, and you shall provide us with proof of such insurance to our satisfaction. If you allow your renter’s insurance coverage to lapse, we may retain a policy for you and assess the premium to the you as additional rent which is due and payable with the monthly rent.

If no box is checked, renter’s insurance is not required.

Additionally, you are *[check one]* ☒ required to purchase personal liability insurance, and you shall provide us with proof of such insurance to our satisfaction ☐ not required to purchase personal liability insurance. If no box is checked, personal liability insurance is not required. If required, failure to maintain personal liability

insurance throughout your tenancy, including any renewal periods and/or lease extensions, may be an incurable breach of this Lease Contract and may result in the termination of tenancy and eviction and/or any other remedies as provided by this Lease Contract or state law. You understand and agree that should you allow your liability coverage to lapse, expire or otherwise be terminated, we may, at our sole option (in lieu of declaring an incurable breach), elect to purchase a liability policy on your behalf and assess the premium to you as additional rent which is due and payable with the monthly rent.

You acknowledge that no portion of the rent paid by you under this agreement will be specifically allocated for the purchase of the owner’s structural fire insurance, though the owner may use a portion of gross rental proceeds obtained from all rental units in the community to purchase such structural fire insurance, and in such an event, that you are in no way a co-insured under any such policy.

9. LOCKS AND LATCHES. Keyed lock(s) will be rekeyed after the prior resident moves out. The rekeying will be done before you move into your apartment. You agree not to install additional or different locks or latches on any doors or windows of the premises, unless we have consented in writing to such installation.

You may at any time ask us to change or rekey locks or latches during the Lease Term. We must comply with those requests, but you must pay for them, unless otherwise provided by law. You agree that any resident may request, either orally or in writing, that we install new or different locks for the premises. You further understand and agree that once we install new or different locks we shall provide keys to the replacement locks to any other residents and/or authorized occupants in the absence of a lawful reason to deny them such keys.

Payment for Rekeying, Repairs, Etc. You must pay for all repairs or replacements arising from misuse or damage to devices by you or your occupants, or guests during your occupancy. You may be required to pay in advance if we notify you within a reasonable time after your request that you are more than 30 days delinquent in reimbursing us for repairing or replacing a device which was misused or damaged by you, your guest or an occupant; or if you have requested that we repair or change or rekey the same device during the 30 days preceding your request and we have complied with your request. Otherwise, you must pay immediately after the work is completed.

Special Provisions and “What If” Clauses

10. SPECIAL PROVISIONS. The following special provisions and any addenda or written rules furnished to you at or before signing will become a part of this Lease Contract and will supersede any conflicting provisions of this printed lease form.

Aggressive animals are not allowed on property and will be removed at management discretion. This includes acts of aggression towards other animals.

See any additional special provisions.

11. REIMBURSEMENT. You must promptly reimburse us for lost rent, loss, damage, government fines, or cost of repairs or service in the apartment community resulting, directly or indirectly, from You, your occupants, guests or visitors. The parties expressly agree that NCGS 42-10 shall not apply to your tenancy and, as such, resident shall be strictly liable for any damage incurred by us, including but not limited to lost rent, even where the premises is not habitable. **Unless the damage or wastewater stoppage is due to our negligence, we’re not liable for—and you must pay for—repairs, replacement costs, and damage to the following that result from your or your invitees, guests, or occupants’ negligence or intentional acts: (1) damage to doors, windows, or screens; (2) damage from windows or doors left open; and (3) damage from wastewater stoppages caused by improper objects in lines exclusively serving your apartment.** We may require payment at any time, including advance payment of repairs for which you’re liable. Delay in demanding sums you owe is not a waiver. Whether or not you pay for the damage, we may still declare a default of the Lease Contract and terminate your right to possession of the premises pursuant to paragraph 33 (Default by Resident) herein.

12. (A) EVICTION OR SUMMARY EJECTMENT AND PROPERTY LEFT IN THE APARTMENT.

In the event you violate any terms or conditions of this Lease Contract or Addenda or fail to perform any promise, duty or obligation you have agreed to or imposed upon you by law, then we, in addition to all other rights and remedies provided by law, may, at our option and with or without notice to you, either (1) terminate this Lease Contract or (2) terminate your right to possession of the premises without terminating this Lease Contract.

Regardless of whether we terminate this Lease Contract or only terminate your right of possession without terminating this Lease Contract, we shall be immediately entitled to possession of the premises and you shall peacefully surrender possession of the premises to us immediately upon our demand. In the event that you fail to surrender possession, we shall re-enter and re-take possession through a summary ejectment proceeding or expedited eviction proceeding as provided by North Carolina law. In the event that we terminate this Lease Contract, all of our duties under this agreement shall terminate and we shall be entitled to collect from you all accrued and unpaid rents, and damages arising under this Lease Contract.

If we bring a suit against you for summary ejectment, the County sheriff may remove your personal property from the apartment within 7 days from the time the sheriff executes the Writ of Possession. You must retake possession of your property if it is removed by the sheriff. If you do not do so, the sheriff may arrange for the storage of your property, and you will be liable for the costs of the proceedings and the storage of your property.

If the sheriff does not store your personal property removed from the apartment, we may take possession of it and move it for storage purposes. In the event of an execution of a Writ of Possession against you, you agree that this sentence hereby constitutes our offer to release your personal property to you during our regular business hours for the seven calendar-day period following the execution of a Writ of Possession. Seven days after being placed in lawful

possession of your personal property by execution of the Writ of Possession, we may throw away, dispose of, or sell your property. If you request that we release your property to you during the seven day period, we must do so during our regular business hours. If we elect to sell your property, we must give you at least seven days notice prior to the sale, and we must release your property to you if you so request before the sale. If you do not request the release of your property within seven days, all costs of summary ejectment, execution and storage proceedings shall be charged to you as court costs and shall constitute a lien against the stored property.

In the event we terminate your right of possession without terminating this Lease Contract, you shall remain liable for the full performance of all the covenants, and we shall use reasonable efforts to re-rent the premises on your behalf and you shall remain liable for any resulting costs, deficiencies or damages. Any such rentals reserved from re-renting shall be applied first to the cost of re-renting the premises and then to the rentals due under this Lease Contract. Re-entry shall not bar the right of recovery of rent or damages for breach of covenants, nor shall the partial receipt of rent after conditions broken be deemed a waiver of forfeiture, as provided by N.C.G.S. In order to entitle us to re-enter and/or terminate this Lease Contract for default, it shall not be deemed necessary to give notice of rent being due and unpaid or of other conditions broken or to make demands for rent, the execution of this Lease signed by you and us being sufficient notice of all terms of this Lease Contract including of the rent being due and demand for the same. We shall have all rights granted pursuant to N.C.G.S. §42-25.9 and §42-25.6.

(B) ABANDONED PROPERTY

If you abandon personal property with a value of \$750 or less from apartment or fail to remove such property at the time of execution of a Writ of Possession, we may, as an alternative to the procedures described above, deliver the property to a non-profit organization regularly providing free or inexpensive clothing or household furnishings to people in need, provided that such organization agrees to store the property separately for a thirty-day period, and to release it to you without charge during this thirty-day period. We will deem personal property to be abandoned if we find evidence clearly showing the apartment has been voluntarily vacated after the rental period has expired and we have no notice of a disability that caused the vacancy.

If the total value of the property left in the apartment at the time of execution of a Writ of Possession is less than \$500, we may deem the property abandoned after five days and may throw away or dispose of the property.

- 13.FAILING TO PAY FIRST MONTH'S RENT. If you don't pay the first month's rent when or before the Lease Contract begins, we may end your right of occupancy and recover damages, future rent, reletting charges, attorney's fees, court costs, and other lawful charges. This paragraph does not apply to termination of this Lease Contract 14 or more days before occupancy by military personnel.
- 14.RENT INCREASES AND LEASE CONTRACT CHANGES. No rent increases or Lease Contract changes are allowed before the initial Lease Contract term ends, except for changes allowed by any special provisions in paragraph 10 (Special Provisions), by a written addendum or amendment signed by you and us, or by reasonable changes of apartment rules allowed under paragraph 19 (Community Policies or Rules). If, at least 5 days before the advance notice deadline referred to in paragraph 3 (Lease Term), we give you written notice

of rent increases or lease changes effective when the lease term or renewal period ends, this Lease Contract will automatically continue month-to-month with the increased rent or lease changes. The new modified Lease Contract will begin on the date stated in the notice (without necessity of your signature) unless you give us written move-out notice under paragraph 43 (Move-Out Notice).

- 15.DELAY OF OCCUPANCY. If occupancy is or will be delayed for construction, repairs, cleaning, or a previous resident's holding over, we're not responsible for the delay. The Lease Contract will remain in force subject to: (1) abatement of rent on a daily basis during delay; and (2) your right to terminate as set forth below. Termination notice must be in writing. After termination, you are entitled only to refund of deposit(s) and any rent paid. You hereby acknowledge and agree that we shall not be responsible for any other damages that may result from our failure to deliver possession of the premises, including but not limited to, moving expenses, lodging, storage, or any other cost, expense or damage whatsoever. Rent abatement or Lease Contract termination does not apply if delay is for cleaning or repairs that don't prevent you from occupying the apartment.
- If there is a delay and we haven't given notice of delay as set forth immediately below, you may terminate up to the date when the apartment is ready for occupancy, but not later.
- (1) If we give written notice to any of you when or after the initial term as set forth in paragraph 3 (Lease Term)—and the notice states that occupancy has been delayed because of construction or a previous resident's holding over, and that the apartment will be ready on a specific date—you may terminate the Lease Contract within 3 days of your receiving the notice, but not later.
- (2) If we give written notice to any of you before the initial term as set forth in paragraph 3 (Lease Term) and the notice states that construction delay is expected and that the apartment will be ready for you to occupy on a specific date, you may terminate the Lease Contract within 7 days after any of you receives written notice, but not later. The readiness date is considered the new initial term as set forth in paragraph 3 (Lease Term) for all purposes. This new date may not be moved to an earlier date unless we and you agree.

16.RENTAL APPLICATION. You understand and agree that we have relied upon the Rental Application ("application") submitted by you as an inducement for entering into this Lease Contract, and you warrant that the facts contained in such application are true. If we determine or learn that any fact or representation in the application is false or deceptive or omits material facts, you shall be in default of this Lease Contract, and in such an event, we shall have all of the rights and remedies set forth in this Lease Contract.

You understand and agree that we reserve the right to check the criminal records of you and your occupants at any time during the original term or any renewal terms of this Lease Contract, though you also agree that we have no affirmative duty to anyone to research or monitor the criminal records or sex offender records of any person.

17.DISCLOSURE RIGHTS. If someone requests information on you or your rental history for law-enforcement, governmental, or business purposes, we may provide it.

While You're Living in the Apartment

18.COMMON AREAS. As used in this Agreement, the terms "Common Area" or "Common Areas" shall refer to all land and fixtures and spaces (other than Our business and management offices) outside the premises that are owned and maintained by us and comprise the single piece of real property that form the single community in which the premises is located. You understand and agree that the use of the Common Areas (including any amenity, swimming pool, exercise room, basketball court, parking areas, laundry facilities, hallways, breezeways, roadways, and so forth) is subject to any Rules and Regulations set by us and that such Rules and Regulations may be changed at any time without notice. You understand and agree that your payment of rent to us only entitles you to the rental and use of the premises and your ingress and egress to and from the premises while you remain in legal possession of the premises; you also understand and agree that your use of any Common Area facility is not included as part of the rent but instead is a privilege granted to you by us. We may revoke your privilege to use any facility upon your default of this Agreement, or if we deem, in our sole discretion, that you or an occupant or guest has misused the facility in any way or has disturbed the rights or comfort of other people.

In the event we revoke your privilege to use a facility, you agree that we have the right to trespass you and your occupant(s) criminally from the facility. You also further agree that: (i) We may close or eliminate any facility at any time; (b) that we may bar you or any occupant or guest from entering or using any facility based on your, or their, misuse of same or based upon your default of this Agreement, including but not limited to your failure to pay rent or any other debt when due under this Agreement; (c) You would not be entitled to any rent reduction or abatement or rescission or damages of any kind whatsoever relating in any way to your inability to access or use any facility. You also agree that we may remove, or we may request that any law enforcement officer remove or otherwise trespass, any person from the Common Areas where such person cannot or will not establish that they are a resident, occupant or guest.

19.COMMUNITY POLICIES OR RULES. You and all guests and occupants must comply with any written apartment rules, any restrictive covenants that might be in place and community policies, including instructions for care of our property. Our rules are

considered part of this Lease Contract. We may make reasonable changes to written rules, effective immediately, if they are distributed and applicable to all units in the apartment community and do not change dollar amounts on page 1 of this Lease Contract.

Amenities. We reserve the right to set the days and hours of use for all Amenities and to change the character of, or close, any Amenity based upon our needs and in our sole and absolute discretion, without notice, obligation or recompense of any nature to you.

20. LIMITATIONS ON CONDUCT. The apartment and other areas reserved for your private use must be kept clean and free of trash, garbage, and other debris. Trash must be disposed of at least weekly in appropriate receptacles in accordance with local ordinances. Passageways may be used only for entry or exit. You agree to keep all passageways and common areas free of obstructions such as trash, storage items, and all forms of personal property. No person shall ride or allow bikes, skateboards, or other similar objects in the passageways. Any swimming pools, saunas, spas, tanning beds, exercise rooms, storerooms, laundry rooms, and similar areas must be used with care in accordance with apartment rules and posted signs. Glass containers are prohibited in all common areas. You, your occupants, or guests may not anywhere in the apartment community: use candles or use kerosene lamps or kerosene heaters without our prior written approval; cook on balconies or outside; or solicit business or contributions. Conducting any kind of business (including child care services) in your apartment or in the apartment community is prohibited—except that any lawful business conducted “at home” by computer, mail, or telephone is permissible if customers, clients, patients, or other business associates do not come to your apartment for business purposes. We may regulate: (1) the use of patios, balconies, and porches; (2) the conduct of furniture movers and delivery persons; and (3) recreational activities in common areas. You'll be liable to us for damage caused by you or any guests or occupants.

We may exclude from the apartment community guests or others who, in our judgment, have been violating the law, violating this Lease Contract or any apartment rules, or disturbing other residents, neighbors, visitors, or owner representatives. We may also exclude from any outside area or common area a person who refuses to show photo identification or refuses to identify himself or herself as a resident, occupant, or guest of a specific resident in the community.

You agree to notify us if you or any occupants are convicted of any felony, or misdemeanor involving a controlled substance, violence to another person or destruction of property. You also agree to notify us if you or any occupant registers as a sex offender in any state. Informing us of criminal convictions or sex offender registry does not waive our right to evict you.

21. PROHIBITED CONDUCT. You, your occupants or guests, or the guests of any occupants, may not engage in the following activities: behaving in a loud or obnoxious manner; disturbing or threatening the rights, comfort, health, safety, or convenience of others (including our agents and employees) in or near the apartment community; disrupting our business operations; criminal activity of any kind, including but not limited to, manufacturing, delivering, possessing with intent to deliver, or otherwise possessing a controlled substance or drug paraphernalia; engaging in or threatening violence; possessing a weapon prohibited by state law; discharging a firearm in the apartment community; displaying or possessing a gun, knife, or other weapon in the common area in a way that may alarm others; storing anything in closets having gas appliances; tampering with utilities or telecommunications; bringing hazardous materials into the apartment community; allowing or inviting any previously trespassed and/or banned guest or visitor into the community.

22. PARKING. We may regulate the time, manner, and place of parking cars, trucks, motorcycles, bicycles, boats, trailers, and recreational vehicles by anyone. We may have unauthorized or illegally parked vehicles towed under an appropriate statute. A vehicle is unauthorized or illegally parked in the apartment community if it:

- (1) has a flat tire or other condition rendering it inoperable; or
- (2) is on jacks, blocks or has wheel(s) missing; or
- (3) has no current license plate or no current registration and/or inspection sticker; or
- (4) takes up more than one parking space; or
- (5) belongs to a resident or occupant who has surrendered or abandoned the apartment; or
- (6) is parked in a marked handicap space without the legally required handicap insignia; or
- (7) is parked in space marked for manager, staff, or guest at the office; or
- (8) blocks another vehicle from exiting; or
- (9) is parked in a fire lane or designated “no parking” area; or

- (10) is parked in a space marked for other resident(s) or unit(s); or
- (11) is parked on the grass, sidewalk, or patio; or
- (12) blocks garbage trucks from access to a dumpster; or
- (13) belongs to a resident and is parked in a visitor or retail parking space.

23. RELEASE OF RESIDENT. Unless you're entitled to terminate your tenancy under paragraphs 10 (Special Provisions), 15 (Delay of Occupancy), 43 (Move-Out Notice), or any other applicable laws, you won't be released from this Lease Contract for any reason—including but not limited to voluntary or involuntary school withdrawal or transfer, voluntary or involuntary job transfer, marriage, separation, divorce, reconciliation, loss of co-residents, loss of employment, bad health, or death.

24. MILITARY PERSONNEL CLAUSE. All parties to this Lease Contract agree to comply with any federal law, including, but not limited to the Service Member's Civil Relief Act, or any applicable state law(s), if you are seeking to terminate this Lease Contract and/or subsequent renewals and/or Lease Contract extensions under the rights granted by such laws.

25. RESIDENT SAFETY AND PROPERTY LOSS. You and all occupants and guests must exercise due care for your own and others' safety and security, especially in the use of smoke detectors and carbon monoxide detectors, keyed deadbolt locks, keyless bolting devices, window latches, and access control devices.

Smoke Detectors and Carbon Monoxide Detectors. We'll furnish smoke detectors and carbon monoxide detectors as required by statute, and we'll test them and provide working batteries, if applicable, when you first take possession. After that, you must pay for and replace batteries as needed, unless the law provides otherwise. We may replace dead or missing batteries at your expense, without prior notice to you. You must periodically inspect the smoke detectors and carbon monoxide detectors to ensure their operability and immediately report smoke detector and carbon monoxide detector malfunctions to us. Neither you nor others may disable smoke detectors and carbon monoxide detectors. If you disable or damage the smoke detector and carbon monoxide detectors, or fail to replace a dead battery or report malfunctions to us, you may be liable to us and others for any loss, damage, or fines from fire, smoke, or water.

Casualty Loss. You shall immediately notify us of any damage to the premises by fire, flooding, or other casualty not caused by us, including any type of catastrophic damage which renders the premises or a substantial portion of the premises, uninhabitable. We're not liable to any resident, guest, or occupant for personal injury or damage or loss of personal property from any cause, including but not limited to: fire, smoke, rain, flood, water and pipe leaks, hail, ice, snow, lightning, wind, explosions, earthquake, interruption of utilities, theft, or vandalism unless otherwise required by law. Furthermore, where such damage is not caused by us, we shall have no obligation to provide alternative housing for you or to pay relocation expenses associated with vacating the premises. During freezing weather, you must ensure that the temperature in the apartment is sufficient to make sure that the pipes do not freeze (the appropriate temperature will depend upon weather conditions and the size and layout of your unit). If the pipes freeze or any other damage is caused by your failure to properly maintain the heat in your apartment, you'll be liable for damage to our and other's property. If you ask our representatives to perform services not contemplated in this Lease Contract, you will indemnify us and hold us harmless from all liability for those services.

Crime or Emergency. Dial 911 or immediately call local medical emergency, fire, or police personnel in case of accident, fire, smoke, or suspected criminal activity or other emergency involving imminent harm. You should then contact our representative. Unless otherwise provided by law, we're not liable to you or any guests or occupants for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes. We're not obliged to furnish security personnel, security lighting, security gates or fences, or other forms of security. If we provide any access control devices or security measures upon the property, they are not a guarantee to prevent crime or to reduce the risk of crime on the property. You agree that no access control or security measures can eliminate all crime and that you will not rely upon any provided access control or security measures as a warranty or guarantee of any kind. We're not responsible for obtaining criminal-history checks on any residents, occupants, guests, or contractors in the apartment community. If you or any occupant or guest is affected by a crime, you must make a written report to our representative and to the appropriate local law-enforcement agency. You must also furnish us with the law-enforcement agency's incident report number upon request.

26.CONDITION OF THE PREMISES AND ALTERATIONS. You'll be given an Inventory and Condition form on or before move-in. You must note on the form all defects or damage within 7 days of being put in possession of the premises and return it to our representative. Otherwise, everything will be considered to be in a clean, safe, and good working condition.

You must use customary diligence in maintaining the apartment and not damaging or littering the common areas. Unless authorized by statute or by us in writing, you must not perform any repairs, painting, wallpapering, carpeting, electrical changes, or otherwise alter our property. No holes or stickers are allowed inside or outside the apartment. But we'll permit a reasonable number of small nail holes for hanging pictures on sheetrock walls and in grooves of wood-paneled walls, unless our rules state otherwise. No water furniture, washing machines, additional phone or TV-cable outlets, alarm systems, or lock changes, additions, or rekeying is permitted unless statutorily allowed or we've consented in writing. You may install a satellite dish or antenna provided you sign our satellite dish or antenna lease addendum which complies with reasonable restrictions allowed by federal law. You agree not to alter, damage, or remove our property, including alarm systems, smoke detectors and carbon monoxide detectors, furniture, telephone and cable TV wiring, screens, locks, and access control devices. When you move in, we'll supply light bulbs for fixtures we furnish, including exterior fixtures operated from inside the apartment; after that, you'll replace them at your expense with bulbs of the same type and wattage. When you move in, we'll supply the initial batteries for any battery-operated smoke detectors and carbon monoxide detectors; after that, you'll be responsible for testing such batteries and replacing the same for the duration of the tenancy and any renewal thereof. Your improvements to the apartment (whether or not we consent) become ours unless we agree otherwise in writing.

27.REQUESTS, REPAIRS, AND MALFUNCTIONS. IF YOU OR ANY OCCUPANT NEEDS TO SEND A NOTICE OR REQUEST—FOR EXAMPLE, FOR REPAIRS, INSTALLATIONS, SERVICES, OR SECURITY-RELATED MATTERS—IT MUST BE SUBMITTED THROUGH EITHER THE ONLINE RESIDENT/MAINTENANCE PORTAL, OR SIGNED AND IN WRITING AND DELIVERED TO OUR DESIGNATED REPRESENTATIVE (except in case of fire, smoke, gas, explosion, overflowing sewage, uncontrollable running water, electrical shorts, crime in progress, or imminently dangerous conditions as specifically defined by law). Our written notes on your oral request do not constitute a written request from you.

Our complying with or responding to any oral request regarding security or non-security matters doesn't waive the strict requirement for written notices under this Lease Contract. You must promptly notify us in writing of: water leaks; electrical problems; malfunctioning lights; broken or missing locks or latches; and other conditions that pose a hazard to property, health, or safety. We may change or install utility lines or equipment serving the apartment if the work is done reasonably without substantially increasing your utility costs. We may turn off equipment and interrupt utilities as needed to avoid property damage or to perform work. If utilities malfunction or are damaged by fire, water, or similar cause, you must notify our representative immediately. Air conditioning problems are rarely emergencies. If air conditioning or other equipment malfunctions, you must notify our representative as soon as possible on a business day. We'll act with customary diligence to make repairs and reconnections.

We may, in our sole discretion, elect to repair substantial damage to the premises within a reasonable time under the circumstances, and in such an event, your obligations under the Lease Contract shall continue. Any obligation to pay rent during such period of repair shall be abated so long as the substantial damage was not caused by you, your occupants, guests or visitors. If we believe that fire or catastrophic damage is substantial, or that performance of needed repairs poses a danger to you, we may terminate your tenancy within a reasonable time by giving you written notice. If your tenancy is so terminated, we'll refund prorated rent (dating back to the date of the casualty) and all deposits, less lawful deductions. Should you fail to vacate the premises following our notice of termination herein you shall be considered a hold over tenant and we may exercise any and all remedies available to us under this Lease Contract.

28.ANIMALS. Unless otherwise provided under federal, state, or local law, no animals (including mammals, reptiles, birds, fish, rodents, and insects) are allowed, even temporarily, anywhere in the apartment or apartment Community unless we've so authorized in writing. You must remove an illegal or unauthorized animal within 24 hours of notice from us, or you will be considered in default of this Lease Contract. If we allow an animal as a pet, you must execute a separate animal addendum which may require additional deposits, rents, fees or other charges. An animal deposit is considered a general security deposit. We will authorize an assistance animal for a disabled person. When allowed by applicable laws, before we authorize an assistance animal, if the disability is not readily apparent, we may require a written statement from a qualified professional verifying the disability-related need for the assistance animal. If we authorize an assistance animal, we may require you to execute a separate animal and/or assistance animal addendum. Animal deposits, additional rents, fees or other charges will not be required for an assistance animal needed due to disability, including an emotional support or service animal, as authorized under federal, state, or local law. You must not feed stray or wild animals.

If you or any guest or occupant violates animal restrictions (with or without your knowledge), you'll be subject to charges, damages, eviction, and other remedies provided in this Lease Contract. You shall remove any pet previously permitted under this Lease Contract and the Animal Addendum within 24 hours of written notification from us that the pet, in our sole judgment, creates a nuisance or disturbance or is, in our opinion, undesirable. If an animal has been in the apartment at any time during your term of occupancy (with or without our consent), we'll charge you for defleaing, deodorizing, and shampooing. Initial and daily animal-violation charges and animal-removal charges are liquidated damages for our time, inconvenience, and overhead (except for attorney's fees and litigation costs) in enforcing animal restrictions and rules.

29.WHEN WE MAY ENTER. If you or any guest or occupant is present, then repairers, servicers, contractors, our representatives or other persons listed in (2) below may peacefully enter the apartment at reasonable times for the purposes listed in (2) below. If nobody is in the apartment, such persons may enter peacefully and at reasonable times by duplicate or master key (or by breaking a window or other means when necessary in emergencies) if:

- (1) written notice of the entry is left in a conspicuous place in the apartment immediately after the entry; *and*
- (2) entry is for: responding to your request; making repairs or replacements; estimating repair or refurbishing costs; performing pest control; doing preventive maintenance; changing filters; testing or replacing smoke-detector and/or carbon monoxide detector batteries; retrieving unreturned tools, equipment, or appliances; preventing waste of utilities; leaving notices; delivering, installing, reconnecting, or replacing appliances, furniture, equipment, or access control devices; removing or rekeying unauthorized access control devices; stopping excessive noise; cutting off electricity according to statute; retrieving property owned or leased by former residents; inspecting when immediate danger to person or property is reasonably suspected; allowing persons to enter as you authorized in your rental application (if you die, are incarcerated, etc.); allowing entry by a law officer with search or arrest warrant or in hot pursuit; showing apartment to prospective residents (after move-out or vacate notice has been given); or showing apartment to government inspectors for the limited purpose of determining housing and fire ordinance compliance by us and to lenders, appraisers, contractors, prospective buyers, or insurance agents. Should you fail or refuse to allow us access to the premises pursuant to the terms of this paragraph, you shall be in default of this Lease Contract.

30.JOINT AND SEVERAL RESPONSIBILITY. Each resident is jointly and severally liable for all lease obligations. If you or any guest or occupant violates the Lease Contract or rules, all residents are considered to have violated the Lease Contract. Our requests and notices to any resident constitute notice to all residents and occupants. Notices and requests from any resident or occupant (including notices of tenancy termination, repair requests, and entry permissions) constitute notice from all residents. Security-deposit refunds and deduction itemizations of multiple residents will comply with paragraph 48 (Deposit Return, Surrender, and Abandonment).

Replacements

31.REPLACEMENTS AND SUBLETTING. Replacing a resident, subletting, assignment, or granting a right or license to occupy is allowed only when we expressly consent in writing. If departing or remaining residents find a replacement resident acceptable to us before moving out and we expressly consent, in writing, to the replacement, subletting, assignment, or granting a right or any license to occupy then:

- (1) a reletting charge *will not* be due;
- (2) a reasonable administrative (paperwork) and/or transfer fee *will* be due, and a rekeying fee will be due if rekeying is requested or required; and
- (3) the departing and remaining residents *will* remain liable for all Lease Contract obligations for the rest of the original Lease Contract term.

Procedures for Replacement. If we approve a replacement resident, then, at our option: (1) the replacement resident must sign this Lease Contract with or without an increase in the total security deposit; or (2) the remaining and replacement residents must sign an entirely new Lease Contract. Unless we agree otherwise in writing, your security deposit will automatically transfer to the replacement resident as of the date we approve. The departing resident will no longer have a right of occupancy or security-deposit refund, but will remain liable for the remainder of the original Lease Contract term unless we agree otherwise in writing—even if a new Lease Contract is signed.

Responsibilities of Owner and Resident

32.RESPONSIBILITIES OF OWNER. We'll act with customary diligence to:

- (1) comply with the applicable building and housing codes;
- (2) make all repairs and do whatever is necessary to put and keep the premises in a fit and habitable condition;
- (3) keep all common areas of the premises in safe condition;
- (4) maintain in good and safe working order and promptly repair all facilities and appliances supplied or required to be supplied by us; and.
- (5) provide operable smoke detectors and/or carbon monoxide detectors and replace or repair the smoke and/or carbon monoxide detectors within 15 days of receipt of your written notification to us.

33.DEFAULT BY RESIDENT. You'll be in default if you or any guest or occupant violates any terms of this Lease Contract or Addenda including but not limited to the following violations: (1) you don't pay rent or other amounts that you owe when due; (2) you or any guest or occupant violates the apartment rules, or fire, safety, health, or criminal laws, regardless of whether or where arrest or conviction occurs; (3) you abandon the apartment; (4) you give incorrect or false answers in a rental application; (5) you or any occupant is arrested, convicted, or given deferred adjudication for a felony offense involving actual or potential physical harm to a person, or involving possession, manufacture, or delivery of a controlled substance, marijuana, or drug paraphernalia under state statute; (6) any illegal drugs or paraphernalia are found in your apartment; (7) you or any guest or occupant engages in any of the prohibited conduct in paragraph 21 (Prohibited Conduct); or (8) you or any occupant, in bad faith, makes an invalid complaint to an official or employee of a utility company or the government.

Eviction. If you default, we may re-enter and re-take possession of the premises as provided in paragraph 12 (Eviction or Summary Ejectment and Property Left in the Apartment) and may immediately institute proceedings for summary ejectment as provided by law without notice or demand. Termination of your possession rights or subsequent reletting doesn't release you from liability for future rent or other lease obligations. After filing a summary ejectment suit, we may still accept a partial payment of rent or a partial housing subsidy payment; the filing or acceptance doesn't waive or diminish our right of eviction, or any other contractual or statutory right. Accepting a partial payment of rent or a partial housing subsidy payment at any time doesn't waive your default of this Lease Contract; our right to damages; past or future rent or other sums; or to file an eviction or to continue with filed eviction proceedings; nor does our exercise of any of our rights in this Paragraph violate Chapter 75 of the N.C. General Statutes. Pursuant to NCGS 42-73, we may accept a full payment of rent due with full and complete knowledge of any criminal acts that violate this Lease Contract without such acceptance of rent constituting any waiver of your default or our rights to enforce the same.

Release of Property Following Writ. If we obtain a judgment for possession against you and the Sheriff has executed a Writ of Possession delivering possession of the premises to us, this paragraph constitutes our offer to release your personal property to you, during our normal business hours, for a period of no more than 7 calendar days after the date of the Sheriff's execution of the Writ of Possession. Should you fail to retrieve your personal property during the lockout period we have the right to throw away or dispose of your personal property without any liability to you for the disposal or destruction of your personal property.

Holdover. You or any occupant, invitee, or guest must not hold over beyond the date contained in your move-out notice or our notice to vacate (or beyond a different move-out date agreed to by the parties in writing). If a holdover occurs, then: (1) holdover rent is due in advance on a daily basis and may become delinquent without notice or demand; (2) rent for the holdover period will be increased by 25% over the then-existing rent, without notice; (3) you'll be liable to us for actual damages arising out of full term of the previously signed Lease Contract of a new resident who can't occupy because of the holdover; and (4) at our option, we may extend the lease term—for up to one month from the date of notice of lease extension—by delivering written notice to you or your apartment while you continue to hold over.

Other Remedies. We may report unpaid amounts to credit agencies. If you default and move out early, you will pay us all sums due and owing. Upon your default, we have all other legal remedies, including lease termination and summary ejectment under state statute. We may recover from you attorney's fees and all litigation costs to the extent permitted by law. In the event we file a summary ejectment lawsuit against you, we may also recover from you the highest one of the following fees (which shall be in addition to late fees, attorney's fees, and any applicable court costs):

- (1) **Complaint Filing Fee.** If you are in default of this Lease Contract and if we file and serve a summary ejectment complaint or a complaint for money owed against you, and if we elect to dismiss the complaint after you cure the default, you shall owe Us a Complaint Filing Fee equal to \$15.00 or five percent (5%) of the monthly rent, whichever is higher. If the rent is subsidized by a government entity, the Complaint Filing Fee will be \$15.00 or 5% of your share of the monthly rent, whichever is higher.
- (2) **Court Appearance Fee.** In the event that (i) we file, serve, and prosecute successfully a summary ejectment complaint or complaint for money owed against you and (ii) a judgment is entered against you, you shall owe us—in lieu of the Complaint Filing Fee—a Court Appearance Fee equal to ten percent (10%) of the monthly rent. If the rent is subsidized by a government entity, the Court Appearance Fee will be 10% of your share of the monthly rent.
- (3) **Second Trial Fee.** In the event that (i) you appeal a judgment of a magistrate and (ii) we prove that you are in default of the lease at the new trial and (iii) we obtain a judgment against you at the new trial, you shall owe us—in lieu of the Complaint Filing Fee and Court Appearance Fee—a Second Trial Fee equal to twelve percent (12%) of the monthly rent. If the monthly rent is subsidized by a government entity, the Second Trial Fee will be 12% of your share of monthly rent.

Mitigation of Damages. If you move out early, you'll be subject to all remedies under North Carolina law. We'll exercise customary diligence to relet and mitigate damages. We'll credit all subsequent rent that we actually receive from subsequent residents against your liability for past-due and future rent and other sums due.

Lease Renewal When A Breach or Default Has Occurred. In the event that you enter into a subsequent Lease prior to the expiration of this Lease and you breach or otherwise commit a default under this Lease, We may, at our sole and absolute discretion, terminate the subsequent Lease, even if the subsequent Lease term has yet to commence. We may terminate said subsequent Lease by sending you written notice of our desire to terminate said subsequent Lease.

Remedies Cumulative. Any remedies set forth herein shall be cumulative, in addition to, and not in limitation of, any other remedies available to Landlord under any applicable law.

General Clauses

34.NO AUTHORITY TO AMEND UNLESS IN WRITING.

Our representatives (including management personnel, employees, and agents) have no authority to waive, amend, or terminate this Lease Contract or any part of it, unless in writing, and no authority to make promises, representations, or agreements that impose security duties or other obligations on us or our representatives unless in writing.

35.NO WAIVER. No action or omission of our representative will be considered a waiver of any subsequent violation, default, or time or place of performance. Our not enforcing or belatedly enforcing written-notice requirements, rental due dates, liens, or other rights isn't a waiver under any circumstances.

36.NOTICE. Except when notice or demand is required by statute, you waive any notice and demand for performance from us if you default. Written notice to or from our managers constitutes notice to or from us. Any person giving a notice under this Lease Contract should retain a copy of the memo, letter or fax that was given. Fax or electronic signatures are binding. All notices must be signed. For purposes of establishing notice the parties may use electronic mail, text message or written notice sent to the addresses and/or mobile number set forth at the end of this Lease Contract.

37.MISCELLANEOUS.

- A. Exercising one remedy won't constitute an election or waiver of other remedies.
- B. Unless prohibited by law or the respective insurance policies, insurance subrogation is waived by all parties.
- C. All remedies are cumulative.
- D. No employee, agent, or management company is personally liable for any of our contractual, statutory, or other obligations merely by virtue of acting on our behalf.
- E. This Lease Contract binds subsequent owners.
- F. Neither an invalid clause nor the omission of initials on any page invalidates this Lease Contract.
- G. All provisions regarding our non-liability and non-duty apply to our employees, agents, and management companies.
- H. This Lease Contract is subordinate or superior to existing and future recorded mortgages, at lender's option.
- I. All Lease Contract obligations must be performed in the county where the apartment is located.
- J. All discretionary rights reserved for us within this Lease Contract or any accompanying addenda are at our sole and absolute discretion.
- K. If the premises or any portion of the community shall be taken by eminent domain pursuant to governmental authority, this Lease Contract shall terminate at our option and you shall have no claim against us or as to any portion of the award granted to us as a result of such taking.

38.CONTACTING YOU. By signing this lease, you are agreeing that we, our representative(s) or agent(s) may contact you. You agree that we may contact you using any contact information relating to your lease including any number or email address (i) you have provided to us (ii) from which you called us, or (iii) which we obtained and through which we reasonably believe we can reach you. You agree we may use any means to contact you. This may include calls made to your cellular telephone using an automatic telephone dialing system, artificial or prerecorded voice messages, text messages, mail, e-mail, and calls to your phone or Voice over Internet Protocol (VoIP) service, or any other data or voice transmission technology. You agree to promptly notify us if you change any contact information you provide to us. You are responsible for any service provider charges as a result of us contacting you.

39.OBLIGATION TO VACATE. If we provide you with a notice to vacate, or if you provide us with a written notice to vacate or intent to move-out in accordance with paragraph 3 (Lease Term), and we accept such written notice, then you are required to vacate the Apartment and remove all of your personal property therefrom at the expiration of the Lease term, or by the date set forth in the notice to vacate, whichever date is earlier, without further notice or demand from us.

40.FORCE MAJEURE. If we are prevented from completing performances of any obligations hereunder by an act of God, strikes, epidemics, war, acts of terrorism, riots, flood, fire, hurricane, tornado, sabotage, or other occurrence which is beyond the control of the parties, then we shall be excused from any further performance of obligations and undertakings hereunder, to the full extent allowed under applicable law.

Furthermore, if such an event damages the property to materially affect its habitability by some or all residents, we reserve the right to vacate any and all leases and you agree to excuse us from any further performance of obligations and undertakings hereunder, to the full extent allowed under applicable law.

41.PAYMENTS. At our option and without notice, we may apply money received first to any of your unpaid obligations, then to current rent—regardless of notations on checks or money orders and regardless of when the obligations arose. This excludes any previously charged late fees and/or unpaid utility payments which are submetered by us. All sums other than rent are due upon our demand. After the due date, we do not have to accept the rent or any other payments.

42.ASSOCIATION MEMBERSHIP. We represent that either: (1) we or;(2) the management company that represents us, is at the time of signing this Lease Contract or a renewal of this Lease Contract, a member of both the National Apartment Association and any affiliated state and local apartment (multi-housing) associations for the area where the apartment is located.

When Moving Out

43.MOVE-OUT NOTICE. Before moving out, you must give our representative advance written move-out notice as provided below. Your move-out notice will not release you from liability for the full term of the Lease Contract or renewal term. You will still be liable for the entire Lease Contract term if you move out early (paragraph 23 - Release of Resident) except under any other applicable laws. YOUR MOVE-OUT NOTICE MUST COMPLY WITH EACH OF THE FOLLOWING:

- We must receive advance written notice of your move-out date. The advance notice must be at least the number of days of notice required in paragraph 3 (Lease Term). Oral move-out notice will not be accepted and will not terminate your Lease Contract.
- Your move-out notice must not terminate your tenancy sooner than the end of the Lease Contract term or renewal period.

YOUR NOTICE IS NOT ACCEPTABLE IF IT DOES NOT COMPLY WITH ALL OF THE ABOVE . Please use our written move-out form. You must obtain from our representative written acknowledgment that we received your move-out notice. If we terminate your tenancy, we must give you the same advance notice—unless you are in default. Where there is more than one resident to this Lease Contract, a notice of termination submitted by one resident shall be considered a notice of termination submitted by all residents. Should there be conflicting notices, the notice of termination shall control.

44.MOVE-OUT PROCEDURES. The move-out date can't be changed unless we and you both agree in writing. You won't move out before the lease term or renewal period ends unless all rent for the entire lease term or renewal period is paid in full. Early move-out may result in reletting charges. You're prohibited by law from applying any security deposit to rent. You won't stay beyond the date you are supposed to move out. All residents, guests, and occupants must vacate the apartment before the 30-day period for deposit refund begins. You must give us and the U.S. Postal Service, in writing, each resident's forwarding address. You shall pay any and all utility bills due for any utility services to the premises for which you are responsible. At or before the time of move-out and surrender of possession, you will provide us with written authorization allowing us to dispose of any personal property left in the premises by you upon surrendering the keys. You understand and acknowledge that your failure to provide such written authorization and/or to remove all personal property from the premises shall constitute your continued possession of the premises requiring us to file an action for summary ejection to regain possession of the premises. Should we be required to file such action you will be responsible for any rental obligation that comes due until such time as we are placed in lawful possession of the premises.

45.CLEANING. You must thoroughly clean the apartment, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. You must follow move-out cleaning instructions if they have been provided. If you don't clean adequately, you'll be liable for reasonable cleaning charges.

46.MOVE-OUT INSPECTION. You should meet with our representative for a move-out inspection. Our representative has no authority to bind or limit us regarding deductions for repairs, damages, or charges. Any statements or estimates by us or our representative are subject to our correction, modification, or disapproval before final refunding or accounting.

47.SECURITY DEPOSIT DEDUCTIONS AND OTHER CHARGES. We may deduct sums from your security deposit for charges related to the following: your possible non-payment of rent, costs of water and sewer services provided, damage to the premises, damage or destruction of smoke detectors or carbon monoxide detectors, nonfulfillment of the rental period, any unpaid bills that become a lien against the demised property due to your occupancy, costs of re-renting the premises after breach by you, including but not limited to any reasonable fees or commissions paid by the landlord to a licensed real estate broker to re-rent the premises, costs of removal and storage of your property after a summary ejectment proceeding, court costs, or any fee authorized by N.C. GEN. STAT. § 42-46.

48.DEPOSIT RETURN, SURRENDER, AND ABANDONMENT.
Deposit Return and Forwarding Address. You are required to provide us written notice of your forwarding address, on or before termination of this Lease Contract. If we can determine the full extent of our deductions from your security deposit, we'll mail you, to the forwarding address you provide, your security deposit refund (less lawful deductions) and an itemized accounting of any deductions no later than 30 days after termination of your tenancy under this Lease Contract and delivery of possession by you, unless statutes provide otherwise. If we cannot determine the full extent of our deductions from your security deposit within the aforementioned 30 day period, we'll mail you an interim itemized accounting of our

deductions from the deposit within 30 days after termination of your tenancy under this Lease Contract and delivery of possession by you, and we'll also mail your security deposit refund (less lawful deductions) and a final itemized accounting of any deductions no later than 60 days after termination of your tenancy under this Lease Contract and delivery of possession by you. If you fail to provide us with your forwarding address in writing, as required above, we will process the unclaimed security deposit in accordance with state law. To the extent there are multiple residents under the Lease Contract, you hereby acknowledge that we may issue any Deposit refund to one or all of the residents and it shall be up to the residents to divide accordingly.

Surrender. You have surrendered the apartment when: (1) the move-out date has passed and no one is living in the apartment in our reasonable judgment; or (2) all apartment keys and access devices listed in paragraph 5 (Keys) have been turned in where rent is paid—whichever date occurs first.

Abandonment. You have abandoned the apartment when all of the following have occurred: (1) everyone appears to have moved out in our reasonable judgment; (2) clothes, furniture, and personal belongings have been substantially removed in our reasonable judgment; (3) you've been in default for non-payment of rent for 5 consecutive days or water, gas, or electric service for the apartment not connected in our name has been terminated; and (4) you've not responded for 2 days to our notice left on the inside of the main entry door, stating that we consider the apartment abandoned. An apartment is also "abandoned" 10 days after the death of a sole resident.

Surrender, abandonment, and judicial eviction end your right of possession for all purposes and gives us the immediate right to: clean up, make repairs in, and relet the apartment, and determine any security deposit deductions. Surrender, abandonment, and judicial eviction affect your rights to property left in the apartment (paragraph 12 - Eviction or Summary Ejectment and Property Left in the Apartment), but do not affect our mitigation obligations (paragraph 33 - Default by Resident).

Severability, Originals and Attachments, and Signatures

49.SEVERABILITY. If any provision of this Lease Contract or Addenda are invalid or unenforceable under applicable law, such provision shall be ineffective to the extent of such invalidity or unenforceability only without invalidating or otherwise affecting the remainder of this Lease Contract. The court shall interpret the lease and provisions herein in a manner such as to uphold the valid portions of this Lease Contract while preserving the intent of the parties.

50.ORIGINALS AND ATTACHMENTS. This Lease Contract and Addenda has been executed in multiple originals, with original signatures. We will provide you with a copy of the Lease Contract and Addenda. Your copy of the Lease Contract and Addenda may be in paper format, in an electronic format at your request, or sent via e-mail if we have communicated by e-mail about this Lease. Our rules and community policies, if any, will be attached to the Lease Contract and Addenda and provided to you at signing. When an Inventory and Condition form is completed, you should retain a copy, and we should retain a copy. Any addenda or amendments you sign as a part of executing this Lease Contract and Addenda are binding and hereby incorporated into and made part of the Lease Contract and Addenda between you and us. This lease is the entire agreement between you and us. You acknowledge that you are NOT relying on any oral representations. A copy or scan of this Lease Contract and related addenda, amendments, and agreements may be used for any purpose and shall be treated as an original.

You are legally bound by this document.
Read it carefully before signing.

Resident or Residents (all sign below)

Jairo A
Maricela zavalu

Address, phone number and email address of resident for notice purposes

#0803, 6740 Rockglen Way
(919) 591-7279
jairoalvarengo353@gmail.com

Owner or Owner's Representative (signing on behalf of owner)

Broker's license (if applicable):

Address and phone number of owner's representative for notice purposes

2525 Pavilion Place
Raleigh, NC 27615
(919) 431-9770

Name and address of locator service (if applicable)

Date form is filled out (same as on top of page 1)

09/29/2025

SPECIAL PROVISIONS (CONTINUED FROM PAGE 2)

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GCI COMMUNITY RULES & REGULATIONS ADDENDUM

It is the Management's goal to maintain this real estate development as an outstanding apartment community. In order to promote and maintain this community, and as a condition of residency, Management has established the following community policies. All residents and guests must abide by these rules and regulations as they are essential for the comfort and convenience of all community residents.

Service Requests. All requests for service should be made to the on-site Leasing or Management Office (Office). We will in turn relay the request to the Maintenance team. Any plumbing leak of a serious nature, frozen water lines, lack of heat in the winter or electrical failure should be considered an emergency, in which case Management should be notified immediately. Air conditioning problems will not be considered an emergency unless the outside temperature exceeds 85 degrees. Any expense incurred by Management as a result of mistreatment of the apartment or common areas will, insofar as necessary, be assessed against the resident(s) responsible. For your convenience and information, a set of instructions for the operation of appliances and mechanical equipment is available upon request. If for any reason it should be necessary to call FIRE, RESCUE, or POLICE for assistance, please call 911 directly for help. Notify Management as to the nature of the emergency immediately AFTER calling the Police, Fire Department, etc.

1. **Keys and Locks.** Alterations or replacement of the locks or installation of bolts, door knockers, peepholes or attachments on the interior or exterior of any door must be completed by Maintenance and have Management's prior approval. Management will admit residents who have been locked out of their apartment during office hours at no charge.

2. **Common Areas.** You understand and agree that the Community's Common Areas have been

designated as smoke-free. You, any Authorized Occupants, and any guest or visitor of Yours shall not smoke anywhere outside of the smoking areas (where available) designated by Us. You acknowledge and agree that Our adoption of smoke-free Common Areas or designation of being a smoke-free community does not make Us the guarantor of Your health or of the smoke-free condition of the Community. However, We shall take reasonable steps to enforce the smoke-free policy of this Agreement where possible and applicable.

Common areas are for the use and enjoyment of all residents at the community. No loitering is permitted. Any residents, occupants and/or their guests conducting themselves in any unreasonable or offensive manner shall be subject to removal from the common areas and such conduct shall further constitute a breach of the Lease. Further, the feeding and sheltering of any animals (wild or not) in the common areas is prohibited.

A parent, guardian or legal custodian, or an authorized representative thereof 18 years of age or older must accompany all persons under the age of 18 residing in the community. The failure of Resident to provide such supervision and access shall constitute a breach of the Resident's Lease.

Twenty-four hour amenities (where applicable) are not to be used for entertaining or sleeping. A maximum of two guests per apartment is strictly enforced.

All common areas, including but not limited to parking lots, stairwells, breezeways, jogging trails, laundry rooms, courtyard areas, clubrooms, sports courts, sidewalks, creeks, lakes, pools and lawns

must be kept clear at all times of any trash, refuse, bicycles, athletic equipment, riding and other personal items. If any such items are noticed by Management personnel and appear to be abandoned, they will be picked up and may be retrieved from the Community Manager's office upon paying a storage fee of \$ 25.00, where applicable. If not picked up within 30 days, items may be disposed of in any manner, including donation to a charitable organization.

The riding of bicycles or any other riding vehicles will not be permitted in any common area unless otherwise approved by the Community Manager. The landscaping is provided to enhance the beauty of the community. **No playing is permitted in any landscaped area.** Play should be limited to those areas designated for playing outside games when provided by Management.

For health and safety reasons, Residents and/or their guests may not serve alcoholic beverages in any common area.

4. **Recreational Facilities.** Please check with the Office prior to using the swimming pool or other recreational facilities for the specific policies that govern their use. Use of the facilities is prohibited after the hours posted. Please obey all posted signage for your safety and protection. For health and safety reasons, children must be accompanied at all times by a parent, guardian or legal custodian.

There are no attendants present at any time at our on-site facilities, including, but not limited to pool, hot tubs, tennis courts, clubroom, exercise facility, saunas, tanning beds, laundry rooms. Therefore, use of our community facilities is solely at the risk of the resident, occupant and/or permitted guests.

Resident agrees to hold the Owner and/or Management harmless for any and all injuries, accidents, or loss suffered by the Resident, occupant and/or any permitted guests by reason

of any use or misuse of the equipment or the facilities of this community.

5. **Business Center.** Resident agrees to use the business center (if applicable) and all equipment therein at Resident's sole risk and according to all community rules and regulations. The Owner and Management shall not be responsible for any losses incurred by Resident as a result of Resident's use of the business center and equipment therein. No inappropriate, pornographic or offensive material (as determined by Management in its sole discretion) may be viewed or downloaded onto the business center computers at any time. Smoking, eating, drinking and any loud or obnoxious behavior are all prohibited within the business center.

6. **Lakes/Ponds.** If your community has a lake or pond, it is imperative that certain common sense guidelines be followed. Swimming, fishing, and boating are not permitted.

7. **Laundry Facilities.** Laundry facilities, where applicable, are available for the exclusive use by Residents during the hours posted. Residents shall not permit persons under the age of 16 to go to the laundry room unless accompanied at all times by a parent, guardian or legal custodian 18 years of age or older. Clothes, laundry baskets, detergents, etc., should not be left unattended in the laundry areas. Please remove your laundry as soon as the machine shuts off. Management is not responsible for loss or damage to personal articles. Please help Management in maintaining your laundry facility by disposing of lint, empty containers, softening sheets, etc., in the trash receptacle. At no time should the laundry facility waste container be used for your daily accumulation of refuse, nor should the facilities be used as a playroom or storage area.

8. **Entrances, Hallways, and Mechanical Rooms.** In compliance with the State and local Fire Codes, bicycles, wagons, carts, and other items are not to be left at entrances or hallways at any time. Likewise, nothing should be stored in mechanical rooms, which contain the furnace and/or hot water heater. Storing items in mechanical rooms could result in damage or

personal injury. The storage of personal belongings is prohibited in common areas such as entrances, hallways, mechanical rooms, stairwells or breezeways. Management reserves the right to remove items left in common areas. Please obtain permission from the Office prior to posting flyers, notices, etc., in any location.

9. **Solicitors and Salespeople.** Because Management wants all Residents to enjoy the privacy of their apartments, we ask that any uninvited solicitors or salespeople be reported to the Office immediately.

10. **Trash Removal Service.** Trash removal service is provided on a regular schedule. Please wrap all refuse securely and place it in the receptacle or chute. Please do not place large articles such as furniture, mattresses, etc., in these areas since the removal service will not dispose of these items. Boxes should be completely collapsed before disposal. If you need to dispose of fireplace ashes, please consult with the Office on the proper procedure.

11. **Disturbances, Noises, Etc.** Residents must refrain from making or permitting any disturbing noises by their family members or guests. Any noisy or boisterous conduct, including the loud playing of stereos, televisions or musical instruments, which would disturb the peace and quiet enjoyment of other Residents, is absolutely prohibited, however, you understand that we cannot guarantee a noise free living environment as we are not able to prevent noises or sounds from penetrating the walls, floors or ceilings of your home. Due to the nature of Multi-Family (Apartment) living environment, you may hear every day sounds such as walking, talking, cleaning, using common household appliance, occasional entertaining, etc. Please refrain from vacuuming or using in-unit laundry equipment, where applicable, between the hours of 10:00 p.m. and 8:00 a.m. in consideration of others.

12. **Exterior Alterations.** In order to maintain an attractive Community and not disturb the architectural designs that have been created, no alterations to the exterior of the building may be made by residents. Residents may not install their own outside antennae or satellite dishes without prior written permission from Management.

13. **Interior Alterations.** Residents wishing to make any alterations such as painting, wallpapering, or hanging decorative light

fixtures on the interior of their apartments must first obtain written permission from Management. If approval is given, the following rule will apply: the Resident must remove the alteration and restore the apartment to its original condition upon vacating the apartment; or if the outgoing Resident wishes to leave the alteration and the Management determines that it is acceptable, the alteration may remain and become part of the property. Alterations **not** permitted include contact paper, tub adhesives, corkboard, mirrored squares, non-strippable wallpaper and tape to secure wall hangings. Nails, mollies and toggle bolts are acceptable and will be removed upon move out by Maintenance at no charge unless there is excessive damage to the wall.

14. **Furnishings.** All equipment, appliances, plumbing, electrical fixtures and amenities in the apartment are to be used for the purposes intended and in accordance with any instructions provided. Alteration of these furnishings is strictly prohibited without written consent of Management. No appliances (including washers and dryers) may be installed or stored in the apartment unless written permission has been obtained from Management. Please do not overload your dishwasher and use detergents made for automatic dishwashers **only**. Turn on cold water before starting your disposal. To keep your disposal in good working order, do not grind bones, rinds or stringy foods. If your disposal stops operating, check the reset button, normally located on the outside bottom of the disposal, before reporting the problem to the Office. Do not flush paper towels, disposable diapers, aluminum can tabs, sanitary napkins, tampons, or cotton swabs down the toilets.

15. **Pipe Freeze Prevention.** If you plan to be away from your apartment for any length of time during the cold weather season, remember to leave the heat on in your apartment at a minimum of 60 degrees, drip your faucets and notify the Office. Failure to do so may result in damage to waterlines from freezing, for which you will be responsible.

16. **Barbecue Grills.** Propane or charcoal barbecue grills are not permitted on patios or balconies. Electric barbecue grills are permitted.

18. **Parking Spaces.** Due to the distribution of the parking spaces, we request that Residents park only one car near their apartment and park any additional cars in extra spaces adjacent to or

across from the building. Under no circumstances will parking on the grass or in restricted areas be permitted. Carports and garages are leased to the Residents on a paid reservation basis. Unauthorized, abandoned, improperly licensed, and out of repair vehicles will be towed at the owner's expense.

19. **Community Transfers.** Transfers from one apartment to another within the same residential development or to another GCI Residential development require management approval and are contingent upon payment history and current apartment conditions as determined by inspection of the premises. Unless market conditions dictate otherwise, all transfers require the payment of a new security deposit and/or transfer fee and/or redecoration fee commensurate with the most recent GCI Residential and/or multi-family community Rental Program. Unless market conditions dictate otherwise, lateral transfers, transfers during the initial lease term or prior to lease expiration are not permitted. The vacated apartment will be inspected and if left in the same condition as upon move in, normal wear and tear excepted, the deposit, if any, will be refunded. All outstanding balances must be brought current at the time of transfer.
20. **Moving of Furniture.** Management reserves the right to designate the time and method for moving or removing any freight, furniture, goods, merchandise, or other articles to or from the premises. Residents may not move furniture in or out of the premises, through patio doors, or through the use of elevators without Management permission. Moving shall be restricted to the hours between 8 A.M. and 10 P.M.
21. **Assumption of Liability.** Neither the Owner nor the Management Company shall be liable to Resident or to any other person on the premises for any damage to persons or property caused by the wrongful act or omission or negligence of Resident, or any other persons on the premises with Resident's consent, or caused by the wrongful act or by omission or negligence of any other Resident or other Resident's family, licensees, or

invitees. Neither the Owner nor the Management Company shall be liable for loss or damage to any property of Resident's or Resident's family, employees, or guests at any time located in the leased premises or on any lands and/or buildings of which the leased premises are part, whether due to theft, or suffered by reason of fire, rising water, rain, hail, lightning, explosion or any other caused beyond the Owner's or Management Company's control. Landlord shall not be liable for any injury to property or persons resulting from any failure or interruption of any utilities or of heating, air conditioning or plumbing systems, unless such failure or interruption is due to the Owner's or Management Company's unreasonable delay and wrongful act or omission and gross negligence following notice to Owner or Management Company of such defect or condition. Should the Resident or any other person on the premises with Resident's consent use laundry, pool, or recreational facilities connected with the land or buildings of which the leased premises are a part, with or without Owner's or Management Company's consent, the use thereof shall be wholly at the risk of the person using same, and neither Owner nor Management Company shall be liable for any injury to persons or loss of or damage to property arising from such use. Resident hereby releases Owner and Management Company, and their successors and assigns, from any and all claims and damages which may arise out of any accidents or injuries to the Resident or any other person on the premises with the Resident's consent that may occur in connection with the use of such facilities. Resident hereby assumes, for the Resident and any other person on the premises with the Resident's consent, any and all risks from any accidents in connection with use of said facilities, and agrees that neither the Owner nor the Management Company shall be held liable for any such injury sustained by Resident or any such persons in connection with use of said facilities.

IN WITNESS WHEREOF the parties have executed these presents in duplicate the day and year first above written.

TITLE: _____
DATE: _____

09/29/2025

Date

Jairo A

Resident Signature

09/29/2025

Date

Maricela ramila

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

G

C

I



NAA
NATIONAL APARTMENT ASSOCIATION
— We Lead the Way Home

UTILITY AND SERVICES ADDENDUM



This Utility Addendum is incorporated into the Lease Contract (referred to in this addendum as “Lease Contract” or “Lease”) dated September 29, 2020 between Barrington Apartments, LLC dba Legacy North Pointe Apartments

(“We”) and Jairo Alvarenga, Dunia Maricela. Padilla

(“You”) of Apt. No. 0803 located at 6740 Rockglen Way

(street address) in Raleigh, NC 27615

and is in addition to all terms and conditions in the Lease. This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract . Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

1. Responsibility for payment of utility and service bills, including charges for usage, deposits, and any charges, taxes, fees, administrative fees or costs associated with the utility services or billing (collectively, “costs”), and the method of metering or otherwise allocating the payment of utility services and costs, will be as indicated below.

a) **Water** service to your apartment and costs will be paid by you either:

☐ Directly to the water service provider; or

☒ Water service will be billed by the service provider to us and then allocated to you based on sub-metering of all your water use.

b) **Sewer** service to your apartment and costs will be paid by you either:

☐ directly to the utility service provider; or

☒ Sewer service will be billed by the service provider to us and then allocated to you based on sub-metering of all your water use.

c) **Gas** service to your apartment and costs will be paid by you directly to the gas service provider.

d) **Trash** service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☒ Trash bills will be billed by the trash service provider to us and then charged to you based on the following formula: flat

☒ If flat rate is selected, the current flat rate is \$ 25.00 per month.

☒ 3rd party billing company if applicable YES Energy Management

e) **Electric** service to your apartment and costs will be paid by you directly to the electric service provider.

f) **Stormwater** service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☐ stormwater bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

g) **Cable TV** service to your apartment will be paid by you either:

☒ directly to the utility service provider; or

☐ cable TV bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

h) **Master Antenna** service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☐ master antenna bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

i) **Internet** service to your apartment will be paid by you either:

☒ directly to the utility service provider; or

☐ internet bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

j) **Pest Control** service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☐ pest control bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

k) (Other) service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☐ bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

l) (Other) service to your apartment will be paid by you either:

☐ directly to the utility service provider; or

☐ bills will be billed by the service provider to us and then allocated to you based on the following formula:

☐ If flat rate is selected, the current flat rate is \$ per month.

☐ 3rd party billing company if applicable

METERING/ALLOCATION METHOD KEY

- “1” - Sub-metering of all of your water/gas/electric use

“2” - Flat rate per month

“3” - Allocation based on the number of persons residing in your apartment

“4” - Allocation based on the number of persons residing in your apartment using a ratio occupancy formula

“5” - Allocation based on square footage of your apartment

“6” - Allocation based on a combination of square footage of your apartment and the number of persons residing in your apartment unit

“7” - Allocation based on the number of bedrooms in your apartment

“8” - Allocation based on a lawful formula not listed here
- (Note: if “8” is selected, a separate “Exhibit A” will be attached describing the formula used)

2. If an allocation method is used, we or our billing company will calculate your allocated share of the utilities and services provided and all costs in accordance with state and local statutes. Under any allocation method, Resident may be paying for part of the utility usage in common areas or in other residential units as well as administrative fees. Both Resident and Owner agree that using a calculation or allocation formula as a basis for estimating total utility consumption is fair and reasonable, while recognizing that the allocation method may or may not accurately reflect actual total utility consumption for Resident. Where lawful, we may change the above methods of determining your allocated share of utilities and services and all other billing methods, in our sole discretion, and after providing written notice to you. More detailed descriptions of billing methods, calculations and allocation formulas will be provided upon request.

3. When billed by us directly or through our billing company, your payment of utility and/or services bills must be received within 30 days of the date when the bill is issued at the place indicated on your bills, or the payment will be late. The late payment of a bill or failure to pay any utility and/or services bill is a material breach of the Lease and we will exercise all lawful remedies available under the Lease. To the extent there is a billing fee for the production of any utility or services bill by us or our billing company, you shall pay such billing fee in an amount not to exceed \$3.75 or any higher amount as approved by the North Carolina Utilities Commission.

4. You will be charged for the full period of time that you are living in, occupying, or responsible for payment of rent and utility or service charges on the apartment. If you breach the Lease, you will be responsible for utility and service charges for the time period you were obligated to pay the charges under the Lease, subject to our mitigation of damages. In the event you fail to timely establish non-water/sewer utilities and services accounts for which you are responsible, we may charge you for any such utilities and services billed to us with respect to your apartment.

5. When you move out, you will receive a final bill, which may be estimated by us based on your prior utility and services usage. This bill must be paid at the time you move out or it will be deducted from the security deposit, as permitted by state law. Unless prohibited by law, bills may also be estimated on a temporary basis when necessary due to equipment malfunctions or other problems.

6. We are not liable for any losses or damages you incur as a result of outages, interruptions, or fluctuations in utilities or any other services provided to the apartment unless such loss or damage was the direct result of an intentional or negligent act or omission by us or our employees. You release us from any and all such claims and waive any claims for offset or reduction of rent or diminished rental value of the apartment due to such outages, interruptions, or fluctuations.

7. You agree not to tamper with, adjust, or disconnect any utility or services sub-metering system or device. Violation of this provision is a material breach of your Lease and may subject you to eviction or other remedies available to us under your Lease and this Addendum.

8. Owner has the sole authority to select and approve all utility and services providers who may provide services to Resident(s) at the apartment community, to the extent not prohibited by law.

9. Where lawful, all utilities, charges and fees of any kind under this lease (except water and sewer charges) shall be considered additional rent, and if partial payments are accepted by the Owner, they will be allocated first to non-rent charges and to rent last.

10. You represent that all occupants that will be residing in the Unit are accurately identified in the Lease. You agree to promptly notify Owner of any change in such number of occupants.

11. You agree that you may, upon thirty (30) days prior written notice from Owner to you, begin receiving a bill for additional utilities and services, at which time such additional utilities and services shall for all purposes be included in the term Utilities.

12. This Addendum is designed for use in multiple jurisdictions, and no billing method, charge, or fee mentioned herein will be used in any jurisdiction where such use would be unlawful. If any provision of this addendum or the Lease is invalid or unenforceable under applicable law, such provision shall be ineffective to the extent of such invalidity or unenforceability only without invalidating or otherwise affecting the remainder of this addendum or the Lease. Except as specifically stated herein, all other terms and conditions of the Lease shall remain unchanged. In the event of any conflict between the terms of this Addendum and the terms of the Lease, the terms of this Addendum shall control.

13. The following special provisions and any addenda or written rules furnished to you at or before signing will become a part of this Utility Addendum and will supersede any conflicting provisions of this printed Utility Addendum and/or the Lease Contract.

[illegible]

Resident Signature Jairo A

Resident Signature Maricela zaval

Resident Signature _____

Resident Signature _____

Resident Signature _____

Resident Signature _____

Owner Representative _____

Date	09/29/2025
Date	09/29/2025
Date	
Date	
Date	
Date	
Date	





ANIMAL ADDENDUM

F1009-GCI

Unit Address:

6740 Rockglen Way #0803, Raleigh, NC 27615

- ☒ Resident does not have a pet(s)/assistance animal(s) (Animal) as of the date of this agreement. Resident understands his or her responsibility to notify management and receive written approval and pay appropriate deposits/fees prior to adding an Animal to the premises.

In connection with the Lease between GCI and Jairo Alvarenga, Dunia Maricela. Padilla

_____ (Resident) for Apartment Community
Legacy North Pointe Apartments located at
6740 Rockglen Way #0803, Raleigh, NC 27615, Management grants permission
 for Resident to keep the Animal(s) described below and only upon the conditions stated.

- The Animal is a _____ that is approximately _____ years old.
- The 2nd Animal, if any, is a _____ that is approximately _____ years old.
- General Animal description: **Please attach a photo of each Animal.**
 Breed: _____ Sex: _____ Color: _____ Name: _____
 Breed: _____ Sex: _____ Color: _____ Name: _____
- Resident maintains that the above Animal (s) is properly licensed and inoculated as required by local law and maintains that the Animal's weight will not exceed established limits (where applicable) when Animal reaches maturity. (When not easily ascertained by breed designation or current size, written documentation from a veterinarian is required.)
- Animals are permitted to be outside of the rented premises only under complete control of the Resident and will be kept on a leash when exercised on the property. Leaving an Animal unattended on a balcony or patio is strictly prohibited.**
- Resident agrees that any damages to the interior or exterior of the premises, grounds, flooring, walls, trim, finishes, tiles, carpeting, or any stains, etc. caused by Animal(s) will be the full responsibility of the Resident and that Resident agrees to pay all costs involved in restoration to its original condition. In the event said damages are such that it cannot be reasonably repaired to an acceptable condition in management's sole discretion, Resident hereby agrees to pay for the full expense of replacement.
- Resident shall pay a refundable pet deposit of \$_____, a non-refundable fee of \$_____ and a monthly pet assessment of \$_____. Due to the potential extreme damage that Animals may cause, additional security deposits, nonrefundable Animal fee(s), or additional rent under this Addendum are not a limit of Resident's liability for damages to Apartment, carpet or flooring replacement, flea spray or shampoo and deodorizing charges.
- Upon vacating the apartment, management shall do an inspection of the apartment and any damage attributable to the Animal shall be charged to the Resident accordingly.
- Resident shall ensure that the Animal will not disturb other residents or cause damage to the Apartment or property. If, in Management's opinion, the Animal is disturbing residents or damaging property, Resident must permanently remove the Animal within seven (7) days of receiving written notice. Failure to do so will constitute a violation of the Lease and thus subject Resident to possible lease termination by Management.
- Except for the Animal(s) described, Resident shall not keep any other Animal or offspring of this Animal on the property. **A "visiting Animal" is prohibited.**
- Failure of Resident to comply with any of the terms of this Addendum shall constitute a default and can result in lease termination at Management's discretion.
- Resident indemnifies Management from and agrees to acquire sufficient renter's insurance and/or other liability insurance to cover the wrongful actions and behavior of the Animal. Such indemnification and



insurance shall include, but not be limited to, the attack or biting of other residents, their Animal(s), occupants, guests, or invitees in the Resident's apartment or any other apartment building or grounds of the apartment community.

13. Management retains the right to inspect Resident's Apartment either for evidence of an Animal or Animal damage with a 24-hour written notice to Resident.
14. Management retains the right to request from Resident a recent photograph of the Animal.
15. If the community participates in a dog identification program (Program), failure to register your dog with the Program within two days of move-in will result in a fine of \$250. Failure to register new dogs after move-in may result in termination of the Lease.

PET / ANIMAL GUIDELINES

1. Pets shall be categorized as follows:
 - a. **Ordinary pets** shall include dogs, cats, caged domesticated birds, hamsters, gerbils, guinea pigs, aquarium fish, small turtles and tortoises and creatures normally maintained in a terrarium or aquarium. All ordinary pets are permitted, subject to these guidelines. **Aggressive breeds strictly prohibited. Breed restrictions apply.**
 - b. **Unusual house pets** shall include without limitation, those animals not generally maintained as pets, such as large reptiles, anthropoids, felines other than domestic cats, canines other than dogs, rodents, mammals, birds and other creatures other than those listed in Subsection a. above, or not maintained in a terrarium or aquarium. **Unusual pets are strictly prohibited.**
2. Management must approve the number of ordinary pets in writing (maximum 2).
3. Animals must be curbed only in the areas defined as "Pet/Animal Areas". Animal owners are responsible for the immediate removal and proper disposal of Animal waste on all portions of the property, including Pet Areas. Management retains the right to assess reasonable fees at their sole discretion if Animal owners curb animals in areas other than designated "Pet/Animal Areas" or fail to properly dispose of Animal waste. Residents of communities that participate in the Program will be assessed a \$250 fee when found to be in violation of this policy.
Generally, Pet/Animal Areas are defined as follows:
 - a. Areas away from buildings, walkways, patio, picnic, play and amenities
 - b. Such other areas defined by Management
4. Animals shall not be permitted upon the common elements of the property unless they are carried or leashed; no leash may exceed six (6) feet in length. No Animal may be leashed to any stationary object on the common elements. Animals shall not be permitted in the pool or grounds contiguous to the pool.
5. Animal owners are responsible for any property damage, injury or disturbances their Animal may cause.
6. Commercial breeding of Animals within the community is prohibited.
7. All Animals must have and display, as appropriate, evidence of all required registrations and inoculations.
8. **Animals shall not be left unattended outside the apartment unit, including on attached patios or balconies.**
9. No owner shall inflict or cause cruelty in connection with any Animal.

Dog Park Etiquette (where applicable)

1. Dog Park closes at sunset daily.
2. No Animals other than dogs may be brought into the fenced area.
3. All dogs must be leashed until safely inside the Dog Park and returned to a leash prior to exiting.
4. Dog owners must remain in the fenced area while their dogs are using the Dog Park. Dogs must be in view of their owners and owners must have voice control at all times.
5. Occupants and visitors under the age of 15 must be accompanied by a resident dog owner and strictly supervised. Spectators should remain outside the fenced area.
6. Aggressive dogs and female dogs in heat are not allowed in the Dog Park. Owners must immediately leash and remove dogs from the Dog Park at the first sign of aggressive behavior.
7. Please be courteous to others and remove any sick dogs from the Dog Park.
8. Owners must dispose of pet waste properly in the designated on-site containers.
9. While small bite-sized training treats are permitted, food in bowls, long-lasting chews, or glass containers are not allowed inside the Dog Park.



10. Smoking and eating are not allowed inside the Dog Park.
11. Puppies less than four (4) months old are not permitted in the Dog Park.
12. Dogs must be licensed and vaccinated for rabies and DHLPP. Current license and rabies tags must be worn on the dog's collar at all times.
13. Owners are liable for any injury or damage caused by their dog and are fully responsible for their dog's actions.

Paw Spa Etiquette (where applicable)

1. The Paw Spa will be open Daily from 8:00am-10:00pm.
2. Animal(s) must remain leashed at all times while using the Paw Spa.
3. Please clean up after your animal(s) and place waste in containers provided.
4. Owners must remain inside the Paw Spa and control their animal(s) at all times.
5. Animal (s) cannot be left unattended and must be removed at the first sign of aggressive behavior.
6. Animal owners choosing to use the Paw Spa are solely responsible for their Animal(s) actions and are liable for any injury or damage caused by their pet(s).
7. No more than two (2) animals allowed at one time.

By signing below, you acknowledge that you have read and understand the Animal guidelines addressed.

TITLE:_____

DATE:_____

Jairo A _____
Resident Signature

09/29/2025 _____
Date

Maricela ramila _____
Resident Signature

09/29/2025 _____
Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date



RESIDENT PARKING ADDENDUM



Date: September 29, 2025
(when this Addendum is filled out)

1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh
(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner’s name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents (list all residents):

Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract. Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

The term of this Parking Addendum is as follows:
Begins on _____, _____ and
ending on _____, _____.

RESIDENT AND OWNER AGREE AS FOLLOWS:

- 3. You agree to properly register all vehicles with management. If you get a new or replacement vehicle you must notify us and complete a revised agreement.
- 4. If you are provided with a parking tag or sticker it must be properly installed and displayed.
- 5. Unless your vehicle(s) has been assigned a specific space(s) you may park in any available space(s) in the parking areas, with the exception of spaces reserved for a particular use or any marked handicap space, unless you possess a government issued handicap decal or similar signage.
- 6. If you are assigned a specific parking space(s) we shall assign you the space(s) and retain the right to change assigned space(s) at our sole discretion.
- 7. You understand and accept that we have the right at any time, without notice, to tow unauthorized or non-registered vehicles from any parking space on the property.
- 8. You agree to use parking spaces in accord with the terms of the Lease and Community Rules.
- 9. Any vehicles which are improperly parked or are in violation of this addendum, the terms of the Lease or Community Rules will be towed at your expense. You agree that we shall not be liable to you for damages related to the physical towing nor any consequential damages you may incur through loss of use of the vehicle(s).

- 10. You understand that we will not be held liable for any damage or theft that may occur while your vehicle(s) is parked on any part of the property. Upon signing this agreement you knowingly accept the risk of parking any vehicle(s) on the property.
- 11. Any action by you, any occupant, guest, or visitor that violates this addendum shall constitute a violation of the Lease Contract.
- 12. You understand and agree that any judgment of possession entered against you shall be a judgment for possession of any parking spaces which you are entitled to under this addendum. Once such judgment is rendered and executed upon you, you shall immediately remove all vehicles from the property parking areas. If you fail to remove your vehicle(s), we shall tow the vehicle(s) at your expense. You agree that we shall not be liable to you for damages related to the physical towing nor any consequential damages you may incur through loss of use of the vehicle(s).

COST FOR PARKING

Resident agrees to pay a onetime fee of \$ 0.00 per vehicle on or before the ____ day of _____, _____. In alternative resident agrees to pay \$ _____ monthly per vehicle due on or before the ____ day of the month. If no amount is filled in parking shall be free for properly registered and authorized vehicles.

Resident understands and accepts that all-parking rights and privileges will immediately be revoked in the case that Resident is ____ days delinquent in paying the required parking fee.

Resident agrees to pay \$ 35.00 NSF fee for all checks returned for non-sufficient funds.

VEHICLE INFORMATION:

Vehicle 1

Make: _____
Model & Year: _____
State: _____
License Plate: _____
Permit Number: _____
Phone Number: _____
Parking Space: _____

Vehicle 2

Make: _____
Model & Year: _____
State: _____
License Plate: _____
Permit Number: _____
Phone Number: _____
Parking Space: _____

Vehicle 3

Make: _____
Model & Year: _____
State: _____
License Plate: _____
Permit Number: _____
Phone Number: _____
Parking Space: _____

13. SPECIAL PROVISIONS

Motorcycles/mopeds must be parked in a
designated parking space with a block or
board under the kickstand to prevent
damage to asphalt.

Resident or Residents
(All residents must sign)

Jairo A

Maricela zavala

Owner or Owner’s Representative
(Signs below)

Date of Signing Addendum





POOL RULES AND REGULATIONS

ADDENDUM TO LEASE

The Rules and Regulations listed below are for the protection and enjoyment of all residents. Your cooperation will allow pleasant relaxation and recreation for all concerned. These Rules and Regulations are enforced and failure to comply will be considered a violation of your lease agreement and will be sufficient cause for any action deemed necessary by Management. *Management reserves the right to alter, adjust or add to these rules without advance notice and reserves the right to refuse entry or deny full privileges at its sole discretion.*

1. All persons using the pool or sunbathing deck do so at their own risk. Management does not assume responsibility for any accidents or injuries in connection with the use of the pool or these facilities.
2. All residents ages **15** and older will be required to display a pool pass in order to gain entry, *where applicable*.
3. All children under the age of (**15**) **MUST BE ACCOMPANIED, AT ALL TIMES, BY AN ADULT RESIDENT OR REGISTERED ADULT SUPERVISOR** at least **18** years of age.
4. Typically, **ONLY 2** guests per apartment are permitted to use the pool and recreational facility on weekends and other peak times, and **ONLY** four guests per apartment are permitted on weekdays. Residents are responsible for guests' conduct and must accompany their guests at all times.
5. You understand and agree that the pool and /or sunbathing deck have been designated as smoke-free. You, any Authorized Occupants, and any guest or visitor of Yours shall not smoke anywhere outside of the smoking areas (where available) designated by Us. You acknowledge and agree that Our adoption of smoke-free Common Areas or designation of being a smoke-free community does not make Us the guarantor of Your health or of the smoke-free condition of the Community. However, We shall take reasonable steps to enforce the smoke-free policy of this Agreement where possible and applicable.
6. Please observe all posted signs in the pool area.
7. Glass of any kind is **PROHIBITED** in the pool area. Beverages **MUST** be in plastic, non-breakable containers. The Health Department will close the pool if **ANY** glass is found within the pool area.
8. Intoxicants of any kind are not permitted.
9. Food and beverages are not allowed in the pool.
10. Profanity, vulgarity, horseplay, running, pushing, dunking or public displays of affection are not permitted.
11. Diving into the pool is prohibited.
12. Radios must be used with headphones or the volume must be maintained at an acceptable level so as not to disturb others. If management provides a sound system, radio use may be prohibited.

13. Persons who require floatation devices for safety purposes must have additional supervision available at all times.
14. Floats and toys are not permitted in the pool. Toys can be used on the pool deck.
15. All swimmers must shower before entering the pool. Please place a towel over lounges before using lotions or oils.
16. All swimmers and sunbathers should be dressed in appropriate attire. (Determined by sole discretion of Management). Persons requiring diapers must wear waterproof pants or diapers specifically manufactured for pool use.
17. Parents/Guardians must closely watch children at all times.
18. NO PETS ARE PERMITTED WITHIN THE FENCED POOL AREA AT ANY TIME.
19. All personal articles must be removed from the pool area upon leaving. Management does not assume responsibility for lost, stolen, or damaged items.
20. Anyone within the pool area before or after the posted hours will be in violation of his or her lease.

TITLE: _____

DATE: _____

Jairo A _____
Resident Signature

09/29/2025 _____

Date

Maricela Zavala _____
Resident Signature

09/29/2025 _____

Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date

Resident Signature

Date

Please note: It is our goal to maintain a quality living environment for our residents. To help achieve this goal, it is important to work together to minimize any mold growth in your dwelling. That is why this addendum contains important information for you, and responsibilities for both you and us.

1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh
(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner's name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents *(list all residents)*:
Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract. Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

3. ABOUT MOLD. Mold is found virtually everywhere in our environment—both indoors and outdoors and in both new and old structures. Molds are naturally occurring microscopic organisms which reproduce by spores and have existed practically from the beginning of time. All of us have lived with mold spores all our lives. Without molds we would all be struggling with large amounts of dead organic matter.

Mold breaks down organic matter in the environment and uses the end product for its food. Mold spores (like plant pollen) spread through the air and are commonly transported by shoes, clothing and other materials. When excess moisture is present inside a dwelling, mold can grow. A 2004 Federal Centers for Disease Control and Prevention study found that there is currently no scientific evidence that the accumulation of mold causes any significant health risks for person with normally functioning immune systems. Nonetheless, appropriate precautions need to be taken.

4. PREVENTING MOLD BEGINS WITH YOU. In order to minimize the potential for mold growth in your dwelling, you must do the following:

- Keep your dwelling clean—particularly the kitchen, the bathroom(s), carpets and floors. Regular vacuuming, mopping and using a household cleaner to clean hard surfaces is important to remove the household dirt and debris that harbor mold or food for mold. Immediately throw away moldy food.
- Remove visible moisture accumulation on windows, walls, ceilings, floors and other surfaces as soon as reasonably possible. Look for leaks in washing machine hoses and discharge lines—especially if the leak is large enough for water to infiltrate nearby walls. Turn on any exhaust fans in the bathroom and kitchen *before* you start showering or

cooking with open pots. When showering, be sure to keep the shower curtain *inside* the tub or fully close the shower doors. Also, the experts recommend that after taking a shower or bath, you: (1) wipe moisture off of shower walls, shower doors, the bathtub and the bathroom floor; (2) leave the bathroom door open until all moisture on the mirrors and bathroom walls and tile surfaces has dissipated; and (3) hang up your towels and bath mats so they will completely dry out.

- Promptly notify us in writing about any air conditioning or heating system problems you discover. Follow our rules, if any, regarding replacement of air filters. Also, it is recommended that you periodically open windows and doors on days when the outdoor weather is dry (i.e., humidity is below 50 percent) to help humid areas of your dwelling dry out.
- Promptly notify us in writing about any signs of water leaks, water infiltration or mold. We will respond in accordance with state law and the Lease Contract to repair or remedy the situation, as necessary.
- Keep the thermostat set to automatically circulate air in the event temperatures rise to or above 80 degrees Fahrenheit.

5. IN ORDER TO AVOID MOLD GROWTH, it is important to prevent excessive moisture buildup in your dwelling. Failure to promptly pay attention to leaks and moisture that might accumulate on dwelling surfaces or that might get inside walls or ceilings can encourage mold growth. Prolonged moisture can result from a wide variety of sources, such as:

- rainwater leaking from roofs, windows, doors and outside walls, as well as flood waters rising above floor level;
- overflows from showers, bathtubs, toilets, lavatories, sinks, washing machines, dehumidifiers, refrigerator or A/C drip pans or clogged up A/C condensation lines;
- leaks from plumbing lines or fixtures, and leaks into walls from bad or missing grouting/caulking around showers, tubs or sinks;
- washing machine hose leaks, plant watering overflows, pet urine, cooking spills, beverage spills and steam from excessive open-pot cooking;
- leaks from clothes dryer discharge vents (which can put lots of moisture into the air); and
- insufficient drying of carpets, carpet pads, shower walls and bathroom floors.

6. IF SMALL AREAS OF MOLD HAVE ALREADY OCCURRED ON NON-POROUS SURFACES (such as ceramic tile, formica, vinyl flooring, metal, wood or plastic), the federal Environmental Protection Agency (EPA) recommends that you first clean the areas with soap (or detergent) and water, let the surface dry, and then within 24 hours apply a pre-mixed, spray-on-type household biocide, such as Lysol Disinfectant®, Pine-Sol Disinfectant® (original pine-scented), Tilex Mildew Remover® or Clorox Cleanup®. (Note: Only a few of the common household cleaners will actually kill mold). Tilex® and Clorox® contain bleach which can discolor or stain. **Be sure to follow the instructions on the container.** Applying biocides without first cleaning away the dirt and oils from the surface is like painting over old paint without first cleaning and preparing the surface.

Always clean and apply a biocide to an area 5 or 6 times larger than any visible mold because mold may be adjacent in quantities not yet visible to the naked eye. A vacuum cleaner with a high-efficiency particulate air (HEPA) filter can be

used to help remove non-visible mold products from porous items, such as fibers in sofas, chairs, drapes and carpets—provided the fibers are completely dry. Machine washing or dry cleaning will remove mold from clothes.

7. **DO NOT CLEAN OR APPLY BIOCIDES TO:** (1) visible mold on *porous surfaces*, such as sheetrock walls or ceilings, or (2) *large areas* of visible mold on *non-porous* surfaces. Instead, notify us in writing, and we will take appropriate action.

8. **COMPLIANCE.** Complying with this addendum will help prevent mold growth in your dwelling, and both you and we will be able to respond correctly if problems develop that could lead to mold growth. If you have questions regarding this addendum, please contact us at the management office or at the phone number shown in your Lease Contract.

If you fail to comply with this Addendum, you can be held responsible for property damage to the dwelling and any health problems that may result. We can't fix problems in your dwelling unless we know about them.

9. **SPECIAL PROVISIONS.** The following special provisions control over conflicting provisions of this printed form:

Resident(s) shall report discoloration of walls, baseboards, doors, window frames, and/or ceilings. Owner or agent reserves the right to terminate the residency and resident(s) agree to vacate the premises in the event owner or agent in its sole judgement feels that either there is mold or mildew present in the dwelling unit which may pose a safety or health hazard to resident(s) or other persons and or resident action or inaction is causing a condition which is conducive to mold growth. Resident(s) agree that owner or agent may conduct inspections of the unit at any time with reasonable notice

Resident or Residents
(All residents must sign here)

Jairo A
Maricela Zavala

Owner or Owner's Representative
(Signs here)

Date of Lease Contract
September 29, 2025

NO-SMOKING ADDENDUM



Date: September 29, 2025
(when this Addendum is filled out)

All use of any tobacco product involving smoking, burning, or combustion of tobacco is prohibited in any portion of the apartment community. You are entitled to receive an original of this No-Smoking Addendum after it is fully signed. Keep it in a safe place.

1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh
(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner’s name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents (list all residents):
Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract. Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

3. DEFINITION OF SMOKING. Smoking refers to any use or possession of a cigar, cigarette, e-cigarette, hookah, vaporizer, or pipe containing tobacco or a tobacco product while that tobacco or tobacco product is burning, lighted, vaporized, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to any form, compound, or synthesis of the plant of the genus Nicotiana or the species N. tabacum which is cultivated for its leaves to be used in cigarettes, cigars, e-cigarettes, hookahs, vaporizers, or pipes. Smoking also refers to use or possession of burning, lighted, vaporized, or ignited non-tobacco products if they are noxious, offensive, unsafe, unhealthy, or irritating to other persons.

4. SMOKING ANYWHERE INSIDE BUILDINGS OF THE APARTMENT COMMUNITY IS STRICTLY PROHIBITED. All forms and use of burning, lighted, vaporized, or ignited tobacco products and smoking of tobacco products inside any dwelling, building, or interior of any portion of the apartment community is strictly prohibited. Any violation of the no-smoking policy is a material and substantial violation of this Addendum and the Lease Contract.

The prohibition on use of any burning, lighted, vaporized, or ignited tobacco products or smoking of any tobacco products extends to all residents, their occupants, guests, invitees and all others who are present on or in any portion of the apartment community. The no-smoking policy and rules extend to, but are not limited to, the management and leasing offices, building interiors and hallways, building common areas, dwellings, club house, exercise or spa facility, tennis courts, all interior areas of the apartment community, commercial shops, businesses, and spaces, work areas, and all other spaces whether in the interior of the apartment community or in the enclosed spaces on the surrounding community grounds.

Smoking of non-tobacco products which are harmful to the health, safety, and welfare of other residents inside any dwelling or building is also prohibited by this Addendum and other provisions of the Lease Contract.

5. SMOKING OUTSIDE BUILDINGS OF THE APARTMENT COMMUNITY. Smoking is permitted only in specially designated areas outside the buildings of the apartment community. Smoking must be at least _____ feet from the buildings in the apartment community, including administrative office buildings. If the previous field is not completed, smoking is only permitted at least 25 feet from the buildings in the apartment community, including administrative office buildings. The smoking-permissible areas are marked by signage.

Smoking on balconies, patios, and limited common areas attached to or outside of your dwelling ☒ is ☐ is not permitted.

The following outside areas of the community may be used for smoking: Smoking is permitted only in
designated smoking areas throughout the
community.

Even though smoking may be permitted in certain limited outside areas, we reserve the right to direct that you and your occupants, family, guests, and invitees cease and desist from smoking in those areas if smoke is entering the dwellings or buildings or if it is interfering with the health, safety, or welfare or disturbing the quiet enjoyment, or business operations of us, other residents, or guests.

6. YOUR RESPONSIBILITY FOR DAMAGES AND CLEANING. You are responsible for payment of all costs and damages to your dwelling, other residents’ dwellings, or any other portion of the apartment community for repair, replacement, or cleaning due to smoking or smoke related damage caused by you or your occupants, family, guests, or invitees, regardless of whether such use was a violation of this Addendum. Any costs or damages we incur related to repairs, replacement, and cleaning due to your smoking or due to your violation of the no-smoking provisions of the Lease Contract are in excess of normal wear and tear. Smoke related damage, including but not limited to, the smell of tobacco smoke which permeates sheetrock, carpeting, wood, insulation, or other components of the dwelling or building is in excess of normal wear and tear in our smoke free apartment community.

7. YOUR RESPONSIBILITY FOR LOSS OF RENTAL INCOME AND ECONOMIC DAMAGES REGARDING OTHER RESIDENTS. You are responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke related damage caused by you or your occupants, family, guests, or invitees which results in or causes other residents to vacate their dwellings, results in disruption of other residents’ quiet enjoyment, or adversely affects other residents’ or occupants’ health, safety, or welfare.

8. LEASE CONTRACT TERMINATION FOR VIOLATION OF THIS ADDENDUM. We have the right to terminate your Lease Contract or right of occupancy of the dwelling for any violation of this No-Smoking Addendum. Violation of the no-smoking provisions is a material and substantial default or violation of the Lease Contract. Despite the termination of the Lease Contract or your occupancy, you will remain liable for rent through the end of the Lease Contract term or the date on which the dwelling is re-rented to a new occupant, whichever comes first. Therefore, you may be responsible for payment of rent after you vacate the leased premises even though you are no longer living in the dwelling.

9. EXTENT OF YOUR LIABILITY FOR LOSSES DUE TO SMOKING. Your responsibility for damages, cleaning, loss of rental income, and loss of other economic damages under this No-Smoking Addendum are in addition to, and not in lieu of, your responsibility for any other damages or loss under the Lease Contract or any other addendum.

10. YOUR RESPONSIBILITY FOR CONDUCT OF OCCUPANTS, FAMILY MEMBERS, AND GUESTS. You are responsible for communicating this community’s no-smoking policy and for ensuring compliance with this Addendum by your occupants, family, guests, and invitees.

11. THERE IS NO WARRANTY OF A SMOKE FREE ENVIRONMENT. Although we prohibit smoking in all interior parts of the apartment community, there is no warranty or guaranty of any kind that your dwelling or the apartment community is smoke free. Smoking in certain limited outside areas is allowed as provided above. Enforcement of our no-smoking policy is a joint responsibility which requires your cooperation in reporting incidents or suspected violations of smoking. You must report violations of our no-smoking policy before we are obligated to investigate and act, and you must thereafter cooperate with us in prosecution of such violations.

This is an important and binding legal document. By signing this Addendum you are agreeing to follow our no-smoking policy and you are acknowledging that a violation could lead to termination of your Lease Contract or right to continue living in the dwelling. If you or someone in your household is a smoker, you should carefully consider whether you will be able to abide by the terms of this Addendum.

Resident or Residents
(All residents must sign here)

Jairo A
Maricela Zavala

12. SPECIAL PROVISIONS. The following special provisions control over conflicting provisions of this printed form:

Owner or Owner’s Representative
(Sign here)

NAA
NATIONAL APARTMENT ASSOCIATION
— We Lead the Way Home

PACKAGE ACCEPTANCE ADDENDUM



1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh

(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner’s name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents (list all residents):
Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract. Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

3. PURPOSE OF ADDENDUM. By signing this Addendum, you wish for us to sign for, and to accept, U.S. mail and privately-delivered packages or other items on your behalf, subject to the terms and conditions set forth herein.

4. PACKAGE ACCEPTANCE.

A. Generally. You hereby authorize us and our agent to accept, on your behalf, any package or item delivered to our on-site management office during disclosed business hours, including but not limited to any package delivered by the U.S. Postal Service or by any private courier service or individual. You also specifically authorize us to sign on your behalf if the person or entity delivering said package or item requires an adult signature prior to delivery, including but not limited to the delivery of certified or registered mail. A photo I.D. is required before any packages will be released. Packages will only be released to verified Residents or approved representatives.

B. Limitations. You understand and agree that we may refuse to accept any package for any reason or no reason at all.

5. TIME LIMITATION. Due to limited storage space, we must ask that you pick up your package as soon as possible. You also agree that we shall have no duty whatsoever to hold or store any package for more than 10 days after receipt (accordingly, you should notify the management office if you are going to be away from the apartment home and expect to be receiving a package(s)). After said time, you agree that any such package is deemed abandoned and you authorize us to return the package to its original sender.

Resident or Residents (All residents must sign)
Jairo A
Maricela zavala

6. DUTY OF CARE, INDEMNIFICATION, ASSUMPTION OF RISKS AND WAIVER. As to any package for which we sign and/or receive on your behalf, you understand and agree that we have no duty to notify you of our receipt of such package, nor do we have any duty to maintain, protect, or deliver said package to you, nor do we have any duty to make said package available to you outside disclosed business hours. Any packages or personal property delivered to us or stored by us shall be at your sole risk, and you assume all risks whatsoever associated with any loss or damage to your packages and personal property. You, your guests, family, invitees, and agents hereby waive any and all claims against us or our agents of any nature regarding or relating to any package or item received by us, including but not limited to, claims for theft, misplacing or damaging any such package, except in the event of our or our agent’s gross negligence or willful misconduct. You also agree to defend and indemnify us and our agents and hold us both harmless from any and all claims that may be brought by any third party relating to any injury sustained relating to or arising from any package that we received on your behalf. You also agree to indemnify us and our agents and hold us harmless from any damage caused to us or our agents by any package received by us for you. You also authorize us to throw away or otherwise dispose of any package that we, in our sole discretion, deem to be dangerous, noxious, or in the case of packaged food, spoiled, and waive any claim whatsoever resulting from such disposal.

7. SEVERABILITY. If any provision of this Addendum or the Lease Contract is illegal, invalid or unenforceable under any applicable law, then it is the intention of the parties that (a) such provision shall be ineffective to the extent of such invalidity or unenforceability only without invalidating or otherwise affecting the remainder of this Addendum or the Lease, (b) the remainder of this Addendum shall not be affected thereby, and (c) it is also the intention of the parties to this Addendum that in lieu of each clause or provision that is illegal, invalid or unenforceable, there be added as a part of this Addendum a clause or provision similar in terms to such illegal, invalid or unenforceable clause or provision as may be possible and be legal, valid and enforceable.

8. SPECIAL PROVISIONS. The following special provisions control over conflicting provisions of this printed form:

We do not accept packages at the Leasing
Office. We do not accept packages that are
temperature sensitive including but not
limited to food, medication, live plants,
etc. The acceptance of packages overall
may be terminated at any time for any
reason. Resident(s) agree when retrieving
package(s) from shared package space that
only items specifically addressed to
resident(s) or other occupant(s) of their
apartment will be removed. Resident(s)
also agrees to ensure door to shared
package area is secured upon leaving.

Owner or Owner’s Representative (Signs below)

Date of Signing Addendum



LEASE CONTRACT ADDENDUM
FOR SATELLITE DISH OR ANTENNA



Under a Federal Communications Commission (FCC) order, you as our resident have a right to install a transmitting or receiving satellite dish or antenna on the leased dwelling, subject to FCC limitations. We as a rental housing owner are allowed to impose reasonable restrictions relating to such installation. You are required to comply with these restrictions as a condition of installing such equipment. This addendum contains the restrictions that you and we agree to follow.

1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh
(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner’s name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents (list all residents):
Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract . Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

3. **NUMBER AND SIZE.** You may install 1 satellite dish(es) or antenna(s) on the leased premises. A satellite dish may not exceed one meter (3.3 feet) in diameter. Antennas that only transmit signals or that are not covered by 47 CFR § 1.4000 are prohibited.
4. **LOCATION.** Your satellite dish or antenna must be located: (1) inside your dwelling; or (2) in an area outside your dwelling such as a balcony, patio, yard, etc. of which you have exclusive use under your lease. Installation is not permitted on any parking area, roof, exterior wall, window, window sill, fence or common area, or in an area that other residents are allowed to use. A satellite dish or antenna may not protrude beyond the vertical and horizontal space that is leased to you for your exclusive use.
5. **SAFETY AND NON-INTERFERENCE.** Your installation: (1) must comply with all applicable ordinances and laws and all reasonable safety standards; (2) may not interfere with our cable, telephone or electrical systems or those of neighboring properties; (3) may not be connected to our telecommunication systems; and (4) may not be connected to our electrical system except by plugging into a 110-volt duplex receptacle. If the satellite dish or antenna is placed in a permitted outside area, it must be safely secured by one of three methods: (1) securely attaching it to a portable, heavy object such as a small slab of concrete; (2) clamping it to a part of the building’s exterior that lies within your leased premises (such as a balcony or patio railing); or (3) any other method approved by us in writing. No other methods are allowed. We may require reasonable screening of the satellite dish or antenna by plants, etc., so long as it does not impair reception.

6. SIGNAL TRANSMISSION FROM EXTERIOR DISH OR ANTENNA TO INTERIOR OF DWELLING.

You may not damage or alter the leased premises and may not drill holes through outside walls, door jams, window sills, etc. If your satellite dish or antenna is installed outside your dwelling (on a balcony, patio, etc.), the signals received by it may be transmitted to the interior of your dwelling only by the following methods: (1) running a “flat” cable under a door jam or window sill in a manner that does not physically alter the premises and does not interfere with proper operation of the door or window; (2) running a traditional or flat cable through a pre-existing hole in the wall (that will not need to be enlarged to accommodate the cable); (3) connecting cables “through a window pane,” similar to how an external car antenna for a cellular phone can be connected to inside wiring by a device glued to either side of the window—without drilling a hole through the window; (4) wireless transmission of the signal from the satellite dish or antenna to a device inside the dwelling; or (5) any other method approved by us in writing.

7. **SAFETY IN INSTALLATION.** In order to assure safety, the strength and type of materials used for installation must be approved by us. Installation must be done by a qualified person or company approved by us. Our approval will not be unreasonably withheld. An installer provided by the seller of the satellite dish or antenna is presumed to be qualified.

8. **MAINTENANCE.** You will have the sole responsibility for maintaining your satellite dish, antenna and all related equipment.

9. **REMOVAL AND DAMAGES.** You must remove the satellite dish or antenna and all related equipment when you move out of the dwelling. In accordance with the Lease Contract, you must pay for any damages and for the cost of repairs or repainting caused by negligence, carelessness, accident or abuse which may be reasonably necessary to restore the leased premises to its condition prior to the installation of your satellite dish, antenna or related equipment. You will not be responsible for normal wear.

10. **LIABILITY INSURANCE.** You must take full responsibility for the satellite dish, antenna and related equipment. If the dish or antenna is installed at a height that could result in injury to others if it becomes unattached and falls, you must provide us with evidence of liability insurance (if available) to protect us against claims of personal injury and property damage to others, related to your satellite dish, antenna and related equipment. The insurance coverage must be \$ _____, which is an amount reasonably determined by us to accomplish that purpose. Factors affecting the amount of insurance include height of installation above ground level, potential wind velocities, risk of the dish/antenna becoming unattached and falling on someone, etc.

11. **SECURITY DEPOSIT.** An additional security deposit of \$ _____ will be charged. We (check one) ☐ will consider or ☐ will not consider this additional security deposit a general security deposit for all purposes. The security deposit amount in the Security Deposit paragraph of the Lease Contract (check one) ☐ does or ☐ does not include this additional deposit amount. Refund of the additional security deposit will be subject to the terms and conditions set forth in the Lease Contract regardless of whether it is considered part of the general security deposit.

This additional security deposit is required to help protect us against possible repair costs, damages, or failure to remove the satellite dish, antenna and related equipment at time of move-out. Factors affecting any security deposit may vary, depending on: (1) how the dish or antenna is attached (nails,screws, lag bolts drilled into walls); (2) whether holes were permitted to be drilled through walls for the cable between the satellite dish and the TV; and (3) the difficulty and cost repair or restoration after removal, etc.

12. WHEN YOU MAY BEGIN INSTALLATION. You may start installation of your satellite dish, antenna or related equipment only after you have: (1) signed this addendum; (2) provided us with written evidence of the liability insurance referred to in paragraph 10 of this addendum; (3) paid us the additional security deposit, if applicable, in paragraph 11; and (4) received our written approval of the installation materials and the person or company that will do the installation, which approval may not be unreasonably withheld.

13. MISCELLANEOUS. If additional satellite dishes or antennas are desired,an additional lease addendum must be executed.

14. SPECIAL PROVISIONS. The following special provisions control over conflicting provisions of this printed form:

Resident or Residents
(All residents must sign here)

Jairo A

Maricela zavalala

Owner or Owner’s Representative
(signs here)

Date of Lease Contract

September 29, 2025

NAA
NATIONAL APARTMENT ASSOCIATION
We Lead the Way Home

from states

BED BUG ADDENDUM



Date: September 29, 2025
(when this Addendum is filled out)

Please note: It is our goal to maintain a quality living environment for our residents. To help achieve this goal, it is important to work together to minimize the potential for any bed bugs in your dwelling or surrounding dwellings. This addendum contains important information that outlines your responsibility and potential liability with regard to bed bugs.

1. DWELLING UNIT DESCRIPTION.

Unit No. 0803, 6740 Rockglen
Way

Raleigh
(city), North Carolina, 27615 (zip code).

2. LEASE CONTRACT DESCRIPTION.

Lease Contract Date: September 29, 2025
Owner's name: Barrington Apartments, LLC dba
Legacy North Pointe Apartments

Residents (list all residents):

Jairo Alvarenga, Dunia Maricela. Padilla

This Addendum constitutes an Addendum to the above described Lease Contract for the above described premises, and is hereby incorporated into and made a part of such Lease Contract. Where the terms or conditions found in this Addendum vary or contradict any terms or conditions found in the Lease Contract, this Addendum shall control.

3. PURPOSE. This Addendum modifies the Lease Contract and addresses situations related to bed bugs (*cimex lectularius*) which may be discovered infesting the dwelling or personal property in the dwelling. You understand that we relied on your representations to us in this Addendum.

4. INSPECTION AND INFESTATIONS. BY SIGNING THIS ADDENDUM, YOU REPRESENT THAT:

- YOU HAVE INSPECTED THE DWELLING PRIOR TO MOVING IN, OR PRIOR TO SIGNING THIS ADDENDUM, AND YOU DID NOT FIND ANY EVIDENCE OF BED BUGS OR A BED BUG INFESTATION;

OR

- YOU WILL INSPECT THE DWELLING WITHIN 48 HOURS AFTER MOVING IN, OR WITHIN 48 HOURS AFTER SIGNING THIS ADDENDUM AND WILL NOTIFY US OF ANY BED BUGS OR BED BUG INFESTATIONS.

You agree that you have read the information provided in this Addendum and that you are not aware of any infestation or presence of bed bugs in your current or previous dwellings, furniture, clothing, personal property, or possessions. You also acknowledge that you have fully disclosed to us any previous bed bug infestations or bed bug issues that you have experienced.

If you disclose to us a previous experience with bed bug infestations or other bed bug related issues, we can review documentation of the previous treatment(s) and inspect your personal property and possession to confirm the absence of bed bugs.

5. ACCESS FOR INSPECTION AND PEST TREATMENT.

You must allow us and our pest control agents access to the dwelling at reasonable times to inspect for or treat bed bugs as allowed by law. You and your family members, occupants, guests, and invitees must cooperate and will not interfere with inspections or treatments. We have the right to select any licensed pest control professional to treat the dwelling and building. We can select the method of treating the dwelling, building and common areas for bed bugs. We can also inspect and treat adjacent or neighboring dwellings to the infestation even if those dwellings are not the source or cause of the known infestation. Unless otherwise prohibited by law, you are responsible for and must, at your own expense, have your own personal property, furniture, clothing and possessions treated according to accepted treatment methods established by a licensed pest control firm that we approve. You must do so as close as possible to the time we treated the dwelling. If you fail to do so, you will be in default, and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract. You agree not to treat the dwelling for a bed bug infestation on your own.

6. NOTIFICATION. You must promptly notify us:

- of any known or suspected bed bug infestation or presence in the dwelling, or in any of your clothing, furniture or personal property.
- of any recurring or unexplained bites, stings, irritations, or sores of the skin or body which you believe is caused by bed bugs, or by any condition or pest you believe is in the dwelling.
- if you discover any condition or evidence that might indicate the presence or infestation of bed bugs, or of any confirmation of bed bug presence by a licensed pest control professional or other authoritative source.

7. COOPERATION. If we confirm the presence or infestation of bed bugs, you must cooperate and coordinate with us and our pest control agents to treat and eliminate the bed bugs. You must follow all directions from us or our agents to clean and treat the dwelling and building that are infested. You must remove or destroy personal property that cannot be treated or cleaned as close as possible to the time we treated the dwelling. Any items you remove from the dwelling must be disposed of off-site and not in the property's trash receptacles. If we confirm the presence or infestation of bed bugs in your dwelling, we have the right to require you to temporarily vacate the dwelling and remove all furniture, clothing and personal belongings in order for us to perform pest control services. If you fail to cooperate with us, you will be in default, and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract.

8. RESPONSIBILITIES. You may be required to pay all reasonable costs of cleaning and pest control treatments incurred by us to treat your dwelling unit for bed bugs. If we confirm the presence or infestation of bed bugs after you vacate your dwelling, you may be responsible for the cost of cleaning and pest control treatments. If we must move other residents in order to treat adjoining or neighboring dwellings to your dwelling unit, you may be liable for payment of any lost rental income and other expenses incurred by us to relocate the neighboring residents and to clean and perform pest control treatments to eradicate infestations in other dwellings. If you fail to pay us for any costs you are liable for, you will be in default, and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract, and obtain immediate possession of the dwelling. If you fail to move out after your right of occupancy has been terminated, you will be liable for holdover rent under the Lease Contract.

9. TRANSFERS. If we allow you to transfer to another dwelling in the community because of the presence of bed bugs, you must have your personal property and possessions treated according to accepted treatment methods or procedures established by a licensed pest control professional. You must provide proof of such cleaning and treatment to our satisfaction.

10. SPECIAL PROVISIONS. The following special provisions control over conflicting provisions of this printed form:

[illegible]

You are legally bound by this document. Please read it carefully.

Resident or Residents
(All residents must sign)

Jairo A
Maricela Zavala

Owner or Owner's Representative
(Signs below)

Date of Signing Addendum

You are entitled to receive an original of this Addendum after it is fully signed. Keep it in a safe place.

BED BUGS — A Guide for Rental Housing Residents

Bed bugs, with a typical lifespan of 6 to 12 months, are wingless, flat, broadly oval-shaped insects. Capable of reaching the size of an apple seed at full growth, bed bugs are distinguishable by their reddish-brown color, although after feeding on the blood of humans and warm-blooded animals—their sole food source—the bugs assume a distinctly blood-red hue until digestion is complete.

Bed bugs don't discriminate

Bed bugs increased presence across the United States in recent decades can be attributed largely to a surge in international travel and trade. It's no surprise then that bed bugs have been found time and time again to have taken up residence in some of the fanciest hotels and apartment buildings in some of the nation's most expensive neighborhoods.

Nonetheless, false claims that associate bed bugs presence with poor hygiene and uncleanness have caused rental housing residents, out of shame, to avoid notifying owners of their presence. This serves only to enable the spread of bed bugs.

While bed bugs are, by their very nature, more attracted to clutter, they're certainly not discouraged by cleanliness.

Bottom line: bed bugs know no social and economic bounds; claims to the contrary are false.

Bed bugs don't transmit disease

There exists no scientific evidence that bed bugs transmit disease. In fact, federal agencies tasked with addressing pest of public health concern, namely the U.S. Environmental Protection Agency and the Centers for Disease Control and Prevention, have refused to elevate bed bugs to the threat level posed by disease transmitting pests. Again, claims associating bed bugs with disease are false.

Identifying bed bugs

Bed bugs can often be found in, around and between:

- Bedding
- Bed frames
- Mattress seams
- Upholstered furniture, especially under cushions and along seams
- Around, behind and under wood furniture, especially along areas where drawers slide
- Curtains and draperies
- Along window and door frames
- Ceiling and wall junctions
- Crown moldings
- Behind and around wall hangings and loose wallpaper
- Between carpeting and walls (carpet can be pulled away from the wall and tack strip)
- Cracks and crevices in walls and floors
- Inside electronic devices, such as smoke and carbon monoxide detectors

- Because bed bugs leave some persons with itchy welts strikingly similar to those caused by fleas and mosquitoes, the origination of such markings often go misdiagnosed. However, welts caused by bed bugs often times appear in succession and on exposed areas of skin, such as the face, neck and arms. In some cases, an individual may not experience any visible reaction resulting from direct contact with bed bugs.
- While bed bugs typically prefer to act at night, they often do not succeed in returning to their hiding spots without leaving traces of their presence through fecal markings of a red to dark brown color, visible on or near beds. Blood stains tend also to appear when the bugs have been squashed, usually by an unsuspecting host in their sleep. And, because they shed, it's not uncommon for skin casts to be left behind in areas typically frequented by bed bugs.

Preventing bed bug encounters when traveling

Because humans serve as bed bugs' main mode of transportation, it is extremely important to be mindful of bed bugs when away from home. Experts agree that the spread of bed bugs across all regions of the United States is largely attributed to an increase in international travel and trade. Travelers are therefore encouraged to take a few minutes upon arriving to their temporary destination to thoroughly inspect their accommodations, so as to ensure that any uninvited guests are detected before the decision is made to unpack.

Because bed bugs can easily travel from one room to another, it is also recommended that travelers thoroughly inspect their luggage and belongings for bed bugs before departing for home.

Bed bug do's and don'ts

- **Do not bring used furniture from unknown sources into your dwelling.** Countless bed bug infestations have stemmed directly from the introduction into a resident's unit of second-hand and abandoned furniture. Unless the determination can be made with absolute certainty that a piece of second-hand furniture is bed bug-free, residents should assume that the reason a seemingly nice looking leather couch, for example, is sitting curbside, waiting to be hauled off to the landfill, may very well be due to the fact that it's teeming with bed bugs.
- **Do address bed bug sightings immediately.** Rental housing residents who suspect the presence of bed bugs in their unit must immediately notify the owner.
- **Do not attempt to treat bed bug infestations.** Under no circumstance should you attempt to eradicate bed bugs. Health hazards associated with the misapplication of traditional and non-traditional, chemical-based insecticides and pesticides poses too great a risk to you and your neighbors.
- **Do comply with eradication protocol.** If the determination is made that your unit is indeed playing host to bed bugs, you must comply with the bed bug eradication protocol set forth by both your owner and their designated pest management company.



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[illegible]

Resident or Residents
(All residents must sign)

Owner or Owner’s Representative
(Signs below)

Jairo A _____
Maricela zavala _____

Date of Signing Addendum





EMERGENCY PREPAREDNESS INFORMATION

F7008-GCI

Unit Address:

6740 Rockglen Way #0803, Raleigh, NC 27615

Insurance

- Your Lease requires that you maintain renter's insurance. You are financially responsible for:
 - The apartment unit you are renting
 - Damage caused by you, the other occupants in your unit, and your guests to (i) the apartment unit you are renting, (ii) the building, (iii) other apartment units within the building, and (iv) the common area amenities provided for your use and enjoyment
- To document the personal contents of your suite, it is a good idea to take photos and keep an inventory of valuable items.

Know Your Building's Fire Protection System

- You should be familiar with the type of fire protection system that is provided in your building.
- You should know the location of fire extinguishers, smoke alarms and/or fire alarm pull stations and know what the alarm sounds like.

Smoke/Carbon Monoxide Alarms

- GCI conducts preventative maintenance, including annual inspections of each apartment unit.
- It is recommended that you test your smoke and/or carbon monoxide alarms monthly. In the event that the alarm does not function properly, contact management and report a service request to have the unit checked and/or batteries replaced.
- You may not disable any smoke detector on the premises, including those in your apartment unit.

Practice a Home Escape Plan

- You should know every way out of every room and your escape route out of the building.
- Avoid placing large furniture or heavy items in front of any egress from your home.
- We recommend that you designate a meeting place for you and all of the occupants of your apartment to gather in the event of an evacuation of your building or unit. This meeting place should be a safe distance from the building.
- Practice your escape plan. In the case of a fire, do not return into the building until directed to do so by the fire department.

Know What To Do In Case of Fire

- Call 911. If a fire is small and you have a fire extinguisher, it is OK to use it. If you have any doubt or the fire is not immediately extinguished, evacuate and pull a fire alarm pull station as you exit. The fire department will respond and take command. Once the fire department and/or law enforcement officials have arrived, medical assistance will be available and you should follow their instructions.
- If your apartment has a direct exit to the outdoors, use the nearest and safest exit. Do not go out of your way to get your coat, valuables or other personal items.
- If your apartment does not have a direct exit to the outdoors, follow the exit signs to the nearest building exit or exit route.
- Don't rush out into a hallway. Feel the door. If it is hot, use another way out. If the door is cool, leave by the nearest and safest exit.
- Never use elevators in a fire. Use the stairs instead. Close all doors behind you to slow fire spread. Leave the building using the nearest and safest exit route.
- Get out and stay out. Do not go into other buildings. Go directly to your planned meeting place and stay there. Stay out of emergency fire lanes. If you think someone is trapped inside, notify the fire department. If the fire department has not yet arrived and a GCI employee is present, you may notify him/her that you believe someone is trapped. Do not re-enter any building until your re-entry is approved by the fire department.
- If you can't escape from your apartment, stuff wet towels, sheets or clothes around the door and vents to keep smoke out. Call 911 or the fire department and tell them where you are. If no smoke is coming into the room you are in, open a window slightly. Stay low and wave a bright cloth, towel or sheet out the window to signal your location.
- If you are disabled and unable to evacuate the building, you must decide to either stay in your apartment or go to the nearest stairwell emergency landing. In either case, call 911 or the fire department and tell them where you are.

